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PAUL OF CONSTANTINOPLE

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I. SOURCES FOR A BIOGRAPHY

THE STORY of Paul, the first man to be consecrated as bishop of Constantinople, has come down to us only in fragments.[1] Le Nain de Tillemont made the first modern attempt to fit the fragments together into a biography.[2] His work is characterized by a sagacity not always exhibited by more recent writers.[3] An addition was made to the fragments previously known by the discovery of passages referring to Paul in the 'codex Theodosianus' [4] belonging to the Chapter Library of Verona. This material was brought into use by E. Schwartz in the ninth of his now-famous articles "Zur Geschichte des Athanasius," where he touches on Paul as an associate of Athanasius.[5] The passages in the 'codex Theodosianus' are in Latin, but they derive ultimately from an Alexandrine work of ecclesiastical history otherwise almost wholly lost. This work, to judge from internal evidences, was composed in 368 to celebrate the forty-years' episcopate of Athanasius, and its theme might be called "The contendings for the faith of the bishops of Alexandria." It is not obvious why such a work should contain anything about either Paul or Constantinople. And a comparison of the Paul passages with those that concern themselves with Alexandrine history is much to the disadvantage of the former. For

[1] Those known to historians from the first are: Socrates, H.E., ii,6.7.12.13.15–18.20.22.23.26.27, and v,9. Sozomen, H.E., iii,3.4.7–10.13.24, iv,2.3, and vii,10. Theodoret, H.E., ii,5. Hilary, Hist. frag. iv,1. Athanasius, De fuga, 3. Hist. Ar. 7. Apart from the events of 342 none of these sources offers assured chronology.

[2] Mémoires, vii (1706) 251–260.

[3] The article Paulus (18) in the Dictionary of Christian Biography, appearing over the initials of Canon W. M. Sinclair is so slipshod as to be useless. V. Schultze, Altchristliche Städte u. Landschaften, I, Konstantinopel (1913), 44–48 uses some violence on the fragments, and declares the problem of fitting them insoluble. (44, Note 5).

[4] Codex LX(58), described by W. Telfer in Harvard Theological Review, XXXVI (1943) 169–246.

[5] Nachrichten v. d. Kgl. Gesellschaft d. Wissenschaften zu Göttingen, (Phil. hist. Kl.) 1911, 475–9, 511–16 (hereafter cited as Schwartz.l.c.).

Alexandrine affairs, this History will quickly be seen to be a source of first-rate authority. But the Paul-passages contain manifest chronological errors and bizarre views. Whatever were the means by which the Alexandrine author got his information about Paul, they left him at the mercy of his own misconceptions. Schwartz therefore found this additional source of information of somewhat problematical value. Such was the position with which the present writer found himself confronted; with one hope of advance, should the field of hagiography yield any further material of value. The hagiography of Paul himself is of no aid. There are two Greek *legenda*, one in the Bibliotheca of Photius [6] and one in the June supplement to the Metaphrast,[7] the historical matter in either case being wholly from Socrates. But Sozomen tells us [8] of a popular cultus already arising in his time around the tombs of two ecclesiastics of Paul's household, Martyrius and Marcian. This cultus established itself, and these saints became known to the Greek church as "the Holy Notaries," with their commemoration on 25 October. Their legend in Symeon Metaphrastes is by the Metaphrast himself,[9] and no one can read it without feeling the presence of historical knowledge not derived from the well-known church histories. In particular, this legend lays the blame for the troubles of the orthodox of Constantinople not principally on ecclesiastics but upon two imperial officials, the Chamberlain Eusebius and the Praetorian Prefect Philip [10]—*Εὐσεβίου μάλιστα καὶ Φιλίππου, (ὧν ὁ μὲν τῇ τοῦ πραιποσίτου τετίμητο δόξῃ, ὁ δὲ τὰ τῆς ἐπαρχίας διεῖπεν, ὁ Φιλίππος) ὑπέκκαυμα Κωνσταντίῳ τοῦ τῶν Ἀρειανῶν ἔρωτος γενομένων.* If, therefore, we could get at what lies behind the Metaphrast, we might have found a first-class source of knowledge about the times of Paul. Now Albert Ehrhard, in his remarkable survey of the early hagiographical tradition of the Greek Church,[11] shows the existence of a legend of the Holy Notaries, with the *incipit ἐγένετο μετὰ τὸ τελει-*

[6] No. 257 in the Bibliotheca (P.G., civ, 120–132) (B.H.G., 1472).
[7] P.G., cxvi, 884–96. (B.H.G., 1473).
[8] H.E., iv, 3.
[9] P.G., cxv, 1289–92.
[10] L.c., 1292AB.
[11] Überlieferung u. Bestand der hagiographischen Literatur der griechischen Kirche, Texte u. Untersuchungen, 4te Reihe, 50 and 51 (1937–8).

ωθῆναι in two MSS of the 12th, and six of the 11th century,[12] and believes that there are the signs of its presence in a palimpsest of the 9th century.[13] Already from the 11th century he finds twenty MSS containing the Metaphrast's legend for the Holy Notaries.[14] The occurrence of the legend ἐγένετο μετὰ τὸ τελειωθῆναι is entirely in legendaries (of some five different types), as a lection for 25 October. It thus appears that, until the influence of the Metaphrast predominated, the makers of legendaries who wanted to include a lection for the Holy Notaries copied the *legendum* ἐγένετο μετὰ τὸ τελειωθῆναι. The legendaries known to Ehrhard that include this commemoration in any form are but a small minority, and the most natural supposition is that they were all written in Constantinople. One of them Cod. Athon. Lawra 426 (a four-month Autumn menology) is dated by the scribe, from Constantinople, in 1039. And it would be a reasonable guess that the archetype of the legend lay in the church of the Holy Notaries. It is evident, therefore, that the text of this pre-Symeon legend is a desideratum, as possibly giving fresh material for the history of Paul. Consequently, the publication, the year before last, by Father Franchi de' Cavalieri, of two recensions of the *legendum*,[15] gives occasion for reopening the whole question. So far as concerns their essential story, the text of the two recensions is identical. Difference is to be seen only in what may be termed "the padding." We may presume an archetype slightly shorter than either recension, which the scribes of the recensions respected so far as to copy them, instead of rewriting them in paraphrase, while allowing themselves a certain amount of free amplification. Thus Franchi de' Cavalieri was able to print in leaded type what may be regarded as roughly the text of the archetype.[16] He argues that its date of composition must be later than 439, because it defines the position of the church of the Holy Notaries at Constantinople [17] as ἐν τῇ Μελαντιαδησίᾳ πόρτῃ,

[12] Op. cit., 50, 170, 349–51, 353–5, 372–3, 462–3.

[13] 50, 117.

[14] 51, 387.

[15] Analecta Bollandiana, LXIV (1946) 132–175. "Una pagina di storia Bizantina del secolo iv, il Martirio dei Santi Notari."

[16] The text of the recensions is given on pp. 169–175.

[17] The detailed argument is on pp. 152–164.

a formula which postulates the existence of the wall of Theodosius II. On the other hand, there is nothing in the document that suggests a later date than the middle fifth century. On the contrary, if we consider its character as hagiography, it is difficult to suppose it to be the work of any hagiographer of the sixth century or later. It is devoid of appeal to the marvellous, and claims the reader's admiration for the Holy Notaries solely on the ground of their steadfastness in the orthodox faith, under persecution. This implies that the Constantinopolitan public for which the legend was composed reacted keenly to the anti-Arian interest, and was ready to dispense with embellishments which soon came to be indispensable in hagiography. The greater part of the *legendum* is not about the Holy Notaries at all, but about Paul. In fact nothing in the common text of the two recensions lies outside the theme of the misfortunes of orthodoxy in Constantinople, from Alexander to Eudoxius, except what Père Delehaye has called the "coordinates" of the cultus (of the Holy Notaries), to wit, the place and date of their annual synaxis.[18] When Sozomen wrote, the place was outside the land-wall of Constantine. When the author of the *legendum* wrote, it was within the wall of Theodosius. Sozomen's chapter on the Notaries provides such excellent material for a *legendum* that we can safely conclude that the author of *ἐγένετο μετὰ τὸ τελειωθῆναι* did not know of it. These facts taken together suggest that this *legendum* is, as such, very little younger than Sozomen. And it may have been the fact that the sanctuary of the Holy Notaries had become an intramural church of Constantinople that brought about the provision of this *legendum*, which, we may conclude, was made up, purely and simply, out of an ancient history in which the martyrdom of the Holy Notaries figured, by the addition of the new topographical notice of their shrine, and the date of their annual commemoration. It is, in short, not hagiography at all, but history taken into service to provide a lection. Thus, when we have removed the "coordinates" from the text common to Franchi de' Cavalieri's two recensions, the residue is the text of an ancient history of the misfortunes of orthodoxy in Constantinople. Anyone to whom is

[18] Cinq Leçons sur la méthode hagiographique, (Subsidia Hagiographica 21) 1934, Chapter 1.

familiar the text of that item of the 'codex Theodosianus' which Batiffol edited under the title of Historia Acephala Arianorum [19] must see, as soon as he studies the text of this ancient history contained in the *legendum* of the Holy Notaries, that there is word-for-word correspondence between a great part of it, and the second section, in Batiffol's edition, of the Historia Acephala. The correspondence is such as to leave no doubt of some very close connection between the two documents. Franchi de' Cavalieri jumped to the conclusion that the author of the legend drew directly upon the original Greek of the Alexandrine history of which the Historia Acephala is a partial Latin version. This is, however, too hasty a conclusion, as the reader will see when he studies, side by side, the history incorporated in the legend and the passages in the codex Theodosianus referring to Paul, as follows:

'Codex Theodosianus'	Common text of the *Legendum*
[ ] = Tunc temporis.	
(1) ('Codex Theodosianus' f. 71, *v.*) Tunc temporis ingerebantur molestiae imperatoribus synodum convocare, ut insidiarentur Paulo episcopo Constantinopolitano per suggestionem Eusebii, Acacii, Theodori, Valentis, Stephani et sociorum ipsorum: et congregata est synodus consulatu Constantini et Constantini apud Sardicam . . .	(1) [Ἐγένετο μετὰ τὸ τελειωθῆναι τὸν μακαριώτατον Ἀλέξανδρον τὸν ἀρχιεπίσκοπον μετὰ τοὺς εὐσεβεῖς καὶ γενναίους ἀγῶνας ἐν καλῇ πίστει, χειροτονηθῆναι δὲ εἰς τὸν τόπον αὐτοῦ Παῦλον ἐπίσκοπον, τὸν γενόμενον καὶ ὁμολογητήν.] Εὐσέβιος οὖν ὁ πραιπόσιτος οὐκ ἐπαύετο ἀπειλῶν καὶ ἐκφοβῶν τὴν ἁγιωτάτην τοῦ θεοῦ ἐκκλησίαν καὶ διενοχλῶν τῷ βασιλεῖ Κωνσταντίῳ τῷ υἱῷ Κωνσταντίνου τοῦ μεγάλου βασιλέως, ὥστε γενέσθαι σύνοδον ἐν Σαρδικῇ πρὸς τὸ καθαιρεθῆναι τὸν μακαριώτατον Παῦλον τὸν ἐπίσκοπον Κωνσταντινουπόλεως.
(2) ('Codex Theodosianus' f.105) consulibus Hypatio et Catulino, Theodorus, Narcissus, Georgius,	(2) συνῆλθον οὖν ἐπὶ τὸ αὐτὸ Θεόδωρος καὶ Νάρκισσος, Γεώργιος, Ἀκάκιος,

[19] Mélanges Cabrières (1899), I, 100–108.

cum ceteris, venerunt Constantinopoli, volentes suadere Paulo communicare sibi, qui nec verbo eos suscepit, etiam eorum salutationem anathematizavit.

Στέφανος, Μηνοφάντης, Οὐρσάκιος, καὶ Βάλης μετὰ καὶ ἄλλων, βουλόμενοι πεῖσαι τὸν μακάριον Παῦλον συνκοινωνῆσαι αὐτοῖς. ὁ δὲ οὔτε λόγον. αὐτῶν ἐδέξατο, ἀλλὰ καὶ τὴν προσηγορίαν αὐτῶν ἀνεθεμάτισεν. ὡς δὲ συνεκροτήθη ἡ σύνοδος ἐν Σαρδικῇ, ἀπέστειλαν μετακαλέσασθαι τὸν μακάριον Παῦλον, ὅνπερ οὐ συνεχώρησεν ὁ λαὸς ἐξελθεῖν ἐκ τῆς πόλεως.

(cf. Theodoret, H.E.,ii,5,2.)

ἀλλὰ Παῦλον τηνικαῦτα οὐκ εἴασεν ὁ λεὼς εἰς τὴν Σαρδικὴν ἀπαχθῆαι, τὰς τῶν ἐναντίων ὀρῤῥωδήσας ἐπιβουλάς.

(5)

comitem Hermogene transmisi ut eum eiciat. quo audito populus per mediam civitatem extraxit Hermogenem

(3)

ἀπεστάλη οὖν κόμης τις ὀνόματι Ἑρμογένης ὡς ὀφείλων τὸν Παῦλον οἱᾧ δήποτ' οὖν προφάσει ἐκβάλλειν τῆς πόλεως. ἰδόντες δε οἱ ὄχλοι συνέσχον τὸν κόμητα Ἑρμογένην καὶ σύραντες αὐτὸν ἐν μέσῳ τῆς πόλεως ἀπέκτειναν λιθοβολοῦντες. ὁ δε ἔπαρχος τῆς πόλεως θεασάμενος τὴν γεναμένην ταραχὴν φυγὰς ᾤχετο.

(3)

adsumentes itaque secum Eusebium [nicommedensem] insidiati sunt beatissimo Paulo, et interponentes calumniam illi de Constante et Magnentio expulerunt Constantinopolim,

(4)

πάλιν οὖν Θεόδωρος καὶ Γεώργιος καὶ Ἀκάκιος καὶ οἱ τούτοις ὅμοιοι ἐπισπασάμενοι μεθ' ἑαυτῶν καὶ Εὐσέβιον τὸν [Νικομηδείας ἐπίσκοπον] καὶ συκοφαντοῦντες ἔλεγον κατ' αὐτοῦ, ὅτιπερ Μαγνέντιος ἔγραψεν Παύλῳ καὶ Παῦλος Μαγνεντίῳ.

(3a)

quo possint locum habere et arianam eresis seminare. populus autem Constantinopolitanus disiderans beatissimum Paulum perseveravit seditionibus ne ducerentur ex urbe, amantes sanam doctrinam eius.

πάντα γὰρ ἐποίουν καὶ ἔσπευδον ὅπως δυνηθῶσιν αὐτὸν ἐκβάλλειν τῆς πόλεως. ὁ δὲ λαὸς Κωνσταντινουπόλεως ἐπιποθοῦντες τὴν εὐσεβῆ διδασκαλίαν τοῦ μακαρίου Παύλου, ἀνθίσταντο μὴ συγχωροῦντες αὐτὸν ἐξελθεῖν ἐκ τῆς πόλεως, πάνυ γὰρ ἠγάπων αὐτόν.

(4)
imperator sane iratus (here follows (5)) ex qua re occassione nancta adversum episcopum exiliaverunt eum in Armoenia.

[ ] = 3(a)

volens Eudoxium hereseos arriane socium et participem Theodorus cum ceteris throno civitatis imponere, ordinatum Germanice, populo vero moto ad seditionem et non permittente quemquam sedere in throno beati Pauli.
adsumentes Macedonium Pauli presbyterum ordinaverunt episcopum Constantinopolitane civitatis, quem omnis episcoporum conventus damnavit quoniam adversus suum patrem impositionem manus hereticorum impie suscepit. Macedonius tamen postquam communicavit illis et subscripsi occassiones ingesserunt nullius momenti. et amoventes de ecclesia constituunt Eudoxium supradictum antiochensem.

(6)
unde in hac secessione Macedoniani appellantur circa spiritum sanctum naufragantes.

(4)
ὁ δὲ βασιλεὺς Κωνστάντιος σφόδρα ἀγανακτήσας (5) ἔνεκεν τῆς αὐτῆς αἰτίας, ἀποστείλας συνέλαβεν τὸν μακάριον Παῦλον, [βουλόμενος κυρῶσαι τὴν τῶν Ἀρειανῶν αἵρεσιν,] καὶ ἐξώρισεν αὐτὸν εἰς Ἀρμενίαν. Εὐσέβιος δὲ ὁ (Νικομηδείας) καὶ οἱ λοιποὶ αἱρεσιάρχαι ἐσκέπτοντο Εὐδόξιόν τινα, τῆς λύμης τῶν Ἀρειανῶν, προβάλλεσθαι εἰς προεδρίαν. ἐπιφυεὶς δὲ πάλιν ὁ λαὸς Κωνσταντινουπόλεως ἤρξατο στασιάζειν καὶ μὴ συγχωρεῖν τοῦτον καθεσθῆναι εἰς τὸν θρόνον Παύλου. ἔπειτα ἐπισχόντες Μακεδόνιόν τινα πρεσβύτερον Παύλου (lacuna) *ἀνεθεμάτισεν, διότι κατὰ τοῦ ἰδιόυ πατρὸς κατεδέξατο ὑπὸ τῶν ἀσεβῶν αἱρετικῶν χειροτονίαν. τοῦτον οὖν τὸν Μακεδόνιον μετὰ τὸ συγκοινωνῆσαι αὐτοῖς καὶ καθυπογράψαι, οὐ μετὰ πολὺν καιρόν εἰς οὐδὲν λογισάμενοι, μετεκίνησαν ἀπὸ τῆς ἐκκλησίας καὶ κατέστησαν τὸν προλεχθέντα Εὐδόξιον τὸν Ἀντιοχείας.*
(Franchi de' Cavalieri fills the above lacuna thus: *προχειρίζονται· τοῦτον δὲ ἡ σύνοδος τῶν ὀρθοδόξων*) *[ἐξιόντος δὲ τοῦ Μακεδονίου τῆς ἐκκλησίας, ἐπηκολούθησαν αὐτῷ πτωχοὶ πλείονες. ἦν γάρ, φησίν, ὁ ἄνθρωπος φιλόπτωχος.]*

(6)
ταύτῃ οὖν τῇ ὑποθέσει Μακεδονιανοὶ ὠνομάσθησαν τῷ πνεύματι τῷ ἁγίῳ ναυαγοῦντες.

The following considerations tell against the hypothesis of Franchi de' Cavalieri. The continuous story of the Greek document answers to two passages in the 'codex Theodosianus,' widely separated, and only seen by inference to derive from one and the

same work. Both passages in the codex contain consular dates, marking an interval of seven years. In the original Alexandrine History, therefore, these passages must have been separated by a considerable part of the adventures of Athanasius. The dates, present in the Latin, are absent from the Greek. And yet, as we shall now show, it is not the Latin that has the events in correct sequence, but the Greek. On Franchi de' Cavalieri's hypothesis, therefore, the hagiograper omitted the dates given in the Alexandrine history, but corrected its chronological blunders. Such action is not in the manner of those times, and least of all is it to be expected in hagiographical *legenda*. The comparison of the two passages, as regards chronological order, is as follows. The Latin begins with the date *consulibus Hypatio et Catulino*, thinly disguising an original *ὑπατευόντων Λιμενίου καὶ Κατουλλίνου* (349). Against this year the Paschal Chronicle [20] has the entry *ἐπὶ τούτων τῶν ὑπάτων ἀπεκτάνθη Κώνστας ἐν Γαλλίαις ὑπὸ Μαγνεντίου, ἄρξας ἔτη ιβ'*. And it is to the conspiracy of Magnentius that the Latin proceeds, by way of a prior (but undated) conspiracy of Paul's enemies. But immediately follows the riot at Constantinople, which actually took place in 342, in which Hermogenes, *Magister equitum*, was done to death. And thence it proceeds to Paul's final exile in 352, as though it were the consequence of the riot. In the Greek, Paul's breach with the Eusebians is on the eve of Sardica (i.e. early summer of 342), and the Hermogenes riot follows immediately. But Paul's enemies have to wait for their revenge till the conspiracy of Magnentius, and, even so, it is only after a period of popular resistance, and the deliberate action of the Emperor, that Paul is finally dismissed and the fortunes of Constantinopolitan orthodoxy ruined. Here, without any attempt at chronology, every event is in its correct order. And the most natural explanation is that we have here the original narrative of the two, told by one to whom the order of the events was a matter of personal knowledge. Once we thus reverse the relationship assumed by Franchi de' Cavalieri, and suppose the ancient history, incorporated in the *legendum*, to have been the Alexandrine historian's source for the tragedy of Paul, everything finds

[20] Corpus Scriptorum Historiae Byzantinae (hereafter cited as C.S.H.B.), Chronicon Paschale, (Edn.L.Dindorf, 1832) I, 535.

its explanation. The Alexandrine knew nothing of the Hermogenes incident, but it seemed to him to offer adequate reason for the Emperor's anger and Paul's exile to Armenia, and he transposed it so as to represent the exile as its immediate consequence. And he covered the whole group of undated events contained in his source with the date of the only one to which he could assign a date, namely the conspiracy of Magnentius. The preceding section of the Historia Acephala refers to events of 346, and the sections that follow contain the dates 353 and 355 respectively, so that the Alexandrine historian might well suppose that he had inserted his notice of Paul at the right point. We may conclude that the more ancient history in the hands of the Alexandrine historian was one whose text is contained in the Greek column above and that it was his sole source of knowledge about Paul and church affairs in the capital. Those portions of the Greek text, above, which have no corresponding Latin, may nevertheless belong to the ancient history, being, for some reason, omitted either by the Alexandrine writer or by the Latin versionist. Thus, in Section 3, above, the clause λιθοβολοῦντες . . . ᾤχετο might be left out for the sake of brevity, and the opening sentence in Section 1 as irrelevant; while, in Section 2, ὡς δὲ . . . πόλεως might be omitted because Sardica, to which it refers, had been dealt with a good deal earlier in the Alexandrine history. On the other hand, the characterization of Eudoxius in the Latin as *ordinatum Germanice*, while it may be an insertion due to the Alexandrine writer's knowledge, might point to an omission by the hagiographer. The moving back, by the Alexandrine writer, of the phrase κυρῶσαι τὴν τῶν Ἀρειανῶν αἵρεσιν from Section 5 to Section 3, above, may mean that he preferred to blame "the Eusebians" rather than the Emperor. It will be seen, later, that it is characteristic of the ancient history to glory in being at war with Constantius and his officers. We may conclude, therefore, that the phrase is in its right position in the Greek.

The phrase ἐξιόντος . . . φιλόπτωχος and Section 6 are missing from Franchi de' Cavalieri's second recension. The presence of Section 6 in the Latin shows that it must, nevertheless, have been part of the common source. This is not the case, however, with ἐξιόντος . . . φιλόπτωχος which we may therefore attribute to

the hand of the hagiographer. With the possible exception of that phrase, the whole of the Greek column above may be taken as text of the ancient history.

After that part of Franchi de' Cavalieri's common text which corresponds with the Latin of the Historia Acephala, (i.e. after the final disappearance of Paul) the text common to the two recensions of the Legend of the Holy Notaries continues to narrate the sufferings of the orthodox at Constantinople. The next sentence [21] runs:

(7) ἡ οὖν (καθολικὴ) ἐκκλησία ἦν συγκεχυμένη καὶ Φίλιππος δὲ ὁ ἔπαρχος εἶλκεν (τοὺς ὀρθοδόξους σφοδρῶς, μάλιστα) τοὺς κοινωνοῦντας Παύλῳ· καὶ γὰρ τοὺς κληρικοὺς αὐτοῦ οὐδὲ εἰς τὴν πόλιν οἰκεῖν συνεχώρει, ἀλλὰ τοὺς μὲν συλλαμβάνων εἰς ἐξορίαν παρέπεμπεν, τοὺς δὲ ἐν τῷ μετώπῳ ἐσφράγιζεν καὶ ἔλεγεν· Οὗτοι τῶν Παυλιανιστῶν εἰσιν. (the words in brackets may be the hagiographer's).

It seems to find an echo in the Metaphrast's *ἐντεῦθεν ἄτιμοι κατὰ μετώπων γραφαὶ ὑποσημαίνουσαι τὸ ὀρθόδοξον.*[22] It is (apart from the bracketed words) to be added, with reasonable confidence, as a seventh section, to the text of the ancient history. It is followed by a statement that among these sufferers were the two Lectors of the blessed Paul, Marcian and Martyrius, who withstood Philip boldly in the faith of God, and suffered death. Here the hagiographer inserted his note on the place of the tombs, after which he continued, for one more sentence, the text of his source, as follows: [23]

(8) Δεινῶς οὖν ἐπεκράτει ὁ διωγμός· καὶ τῶν μὲν ἐθνῶν ὁ πόλεμος ἐπέπαυτο, ἀλλὰ γεγραφήκει Εὐσέβιος πραιπόσιτος ὁ εὐνοῦχος τῷ ἐπάρχῳ. ὅπως μηδεὶς λάβῃ ἀνόνας (sic) ἐν Κωνσταντινουπόλει, ἐὰν μὴ κοινωνήσῃ Εὐδοξίῳ καὶ τῇ αἱρέσει τῶν Ἀρειανῶν· οὕτως γεγόνασιν πλεῖστοι αἱρετικοί, μαλιστα οἱ ἔχοντες ἀννόνας.

This is the text of the first recension, and if it is accepted as text of the eighth section of the common source, as is reasonable, the corresponding matter in the second recension must be accounted a paraphrase. To this eighth section we may add a sentence,

[21] Analecta Bollandiana, l.c., p. 170, lines 25–30.
[22] P.G., cxv, 1292B.
[23] Analecta Bollandiana, l.c., p. 171.

which seems to correspond with the Latin of the opening sentence of Section 13 *bis* in Batiffol's edition of the Historia Acephala.[24] The comparison is as follows:

(Apud Constantinopolim) autem Eudoxius Germanice (tenebat ecclesiam) et erat inter eum et Macedonium heresis.	κατεμερίσθησαν δὲ οἱ μὲν μετὰ Εὐδοξίου, οἱ δὲ μετὰ Μακεδονίου.

The statement, in Section 5 above, that the translation of Eudoxius to Constantinople from Germanicia was mooted in (apparently) 351, would suggest that he was to come into the story again later. And that gives us the more ground for assurance that our Section 8 really belongs to the ancient history. Section 13 *bis* of the Historia Acephala, after the above opening words, is a derisive account of an *alia pejor heresis* introduced through Eudoxius. This is not reproduced in the Legend of the Holy Notaries. It would, indeed, be strange matter for a *legendum*. It is rather odd, as a constituent of the Alexandrine history; except that this work, like the polemical writings of Athanasius himself, is given to reproducing documents, of friends and foes alike. But if it represents a ninth Section of the ancient history, that section not only recorded the translation of Eudoxius to Constantinople but also the formation of the Anomoean party; and on lines very like those of Theodoret.[25] In that case, the ancient history cannot have been composed earlier than 361. But it reflects in no way the revolution in ecclesiastical affairs accompanied by the execution of the Chamberlain Eusebius that followed the death of Constantius. Between these two considerations we are pinned down to the year 361 for its composition. We may guess it to have been written, in heat and bitterness, by a Paulist who had been forced to leave Constantinople. And the fact that his work soon came to be used by an Alexandrine writer suggests that Alexandria was the place of his exile. We have thus succeeded, at one stroke, in getting behind both the Metaphrast and the 'codex Theodosianus', by discovering the text of a Paulist lament and manifesto composed in 361 by someone with first-hand

[24] Mélanges Cabrières, l.c., pp. 104–5.
[25] H.E., ii, 29.

knowledge of the things about which he wrote. Clearly it is a source for the history of Paul of the highest authority. It will be convenient to refer to it as P, and to its component sections, as defined above, by the symbols P^1, P^2, and so on.

But P, for all that it dates only a decade after Paul's death, is not our earliest source for Paul's history. The oldest document in our hands is the Latin encyclical which the Eastern delegates to Sardica addressed to the Donatists.[26] This we may cite as S, appending the section-numbers in Feder's edition of the historical works of Hilary of Poictiers. S is intensely hostile to Paul, and was written while his stormy career was still in full course.

In Historia Arianorum, Athanasius gives us a thumb-nail sketch of Paul's sufferings.[27] This work, couched in the allusive and tantalizing style characteristic of Athanasian polemics, was composed about the same time as P. It, too, is a primary document for our purpose, and may be cited as A. It is reinforced by a brief passage in De fuga,[28] and was unknown to the authors of the later fragments.

The value of what we find in Socrates and Sozomen about Paul depends principally on the character of their sources.[29] The destruction of the Nicene tradition in Constantinople, which began under Constantius and was continued under Valens, involved all records of church life under Paul. But the Novatian sect, though persecuted, survived, and even gave liturgical asylum to surviving Paulists.[30] When, therefore, we find in Socrates and Sozomen a trilogy of stories relating the rivalry between Paul and Macedonius and the harm it brought to the city, a trilogy marked by a detached and ironical impartiality towards state-church quarrels,

[26] Corpus Scriptorum Ecclesiasticorum Latinorum, LXV (S. Hilarii Ep. Pictaviensis Opera Pars IV. Edn. A. L. Feder. 1916) 48–78, hereafter cited as Feder. The Paul passages are p. 50 line 18–p. 51 line 8, p. 54 line 24–p. 55 line 25, p. 55 lines 10–11, p. 56 lines 18–22, p. 57 lines 20–23, p. 58 lines 8–11, p. 61 lines 9–30, p. 63 lines 23–27, p. 66 lines 4–11 and 30, p. 67 lines 1–7.

[27] Section 7. P.G., xxv, 701.

[28] Section 3. P.G., xxv, 648D.–649A.

[29] For these in general, see F. Geppert, Die Quellen des Kirchenhistorikers Socrates (1898) and G. Schoo, Die Quellen des Kirchenhistorikers Sozomenos, (1911) respectively iii, 4 in the original, and xi in the new, Studien zur Geschichte der Theologie und der Kirche (Ed. N. Bonwetsch and R. Seeberg).

[30] So Auxanon told Socrates, H.E., ii, 38.

we may attribute its authorship to a Novatian.[31] Both historians apparently had the source-document before them, but both paraphrased and supplemented freely, so that we cannot reconstruct its text, at all, but only gather something of its character and contents. The third of the stories, telling of the ruse by which Paul was removed from Constantinople in 344, assumes the finality of the reverse which Paul then suffered, and its irony requires that assumption. But as Paul returned, in 346, for another five years episcopate, we must conclude that this Novatian squib dates about 345. So far as it is accessible, it is of the first order of authority. It will be convenient to refer to the trilogy as N, and its three members as N^1, N^2 and N^3.

Apart from N, Socrates has three minor sources for Paul. The *συναγωγὴ τῶν συνοδίκων* of Sabinus of Heraclea, to which Sozomen also went direct,[32] may have supplied notice of the synods which replaced Paul by Eusebius of Nicomedia in 338 and 'provided' Macedonius for the see of Constantinople in 342. Socrates, in ii, 13., names the consuls for 342, and adds, without relevance to the context, that Constans brought the Franks to submission. The entry *Franci a Constante perdomiti* stands in the Hieronymian Chronicle, side by side with the Hermogenes riot (the theme of Socrates ii, 13 = N^2), for the same year.[33] It appears, therefore, that Socrates is here combining information from a chronicle [34] with the Novatian writer's narrative. In this Sozomen does not follow suit, merely giving the gist of N^2. We must also conjecture that Socrates and Sozomen had a Western source or sources, representative of the Western bishops' view of

[31] The passages are Socrates ii, 6 (excepting the last sentence) 13 (with the end of 12) and 16 (excepting the last two sentences). P.G., lxvii, 192–3, 208–9, 213–7. Sozomen iii, 3 and part of 4, part of 7, 9 (except the last section) P.G., lxvii, 1037–40, 1049–52, 1056. Socrates ii, 27 and Sozomen iv, 2 and 3, treating of the persecuting tactics of Macedonius, seem also to derive from Novatian sources. A further possible indication of Novatian authorship of the trilogy is the phrase which appears in Socrates, in N^3, *οἵ τε τῆς ὁμοουσίου πίστεως*. Socrates, left to himself, would have said *ἐκκλησιαστικοί*. The author of N is never interested in either Paul or Macedonius, but only in the harm they did to Constantinople.

[32] See P. Batiffol, Byzantinische Zeitschrift t. vii (1898), 265–284.

[33] Die griechischen christlichen Schriftsteller (hereafter cited as G.C.S.) XVII (i), 235. (Edn. R. Helm. 1913).

[34] O. Seeck, Jahrb. f. klass. Philologie, 1889, Heft 8 und 9., argues that the ancient chronicle in question has survived almost entire, between Socrates and other early chronicles.

their controversy with the East, over the exiled orthodox, and constituting a sort of counterblast to S. It does not seem to have been a document of much historical reliability. A pretended citation of a letter from Constans to Constantius (to which we shall return), and the misdating of the synod of Sardica by five years, appear to form part of its questionable contribution to the Histories of Socrates and Sozomen. On the other hand, it probably provided, through Socrates, ii, 23, our only light on the circumstances of Paul's last return to Constantinople. It is from a similar, or perhaps identical, source, that Theodoret obtained his note on Paul, which he combines with matter from A, in H.E., ii, 5.

The task of anyone who would write a biography of Paul is to take A as framework and interpret its allusions with the help of other sources. Perhaps the first person to make the attempt on these lines was George Cedrenus,[35] with Socrates and Sozomen as his aids. But it deserves now to be repeated with the aid of S, N, and, above all, of P.

One ostensible source, on the other hand, must be dismissed as worthless. This is Gelasius of Cyzicus,[36] according to whom Paul was Lector and Notary, under Alexander as presbyter and legate of Metrophanes, bishop of Byzantium. The story is that they were sent, after the Council of Nicaea, to establish the Nicene doctrine in the Cyclades. Metrophanes, like Pope Sylvester, is supposed to be too aged to go to Nicaea in person,[37] and so sends Alexander and Paul (who correspond to the Roman legates Vito and Victor) to represent him. Then, after the Council, *ὑπογραφαὶ περὶ τῆς πίστεως* are supposed to be distributed by area-representatives to all parts of the world. It is significant of the nature of this Gelasian story that the bishop of Cyzicus is to take action for Asia, the Hellespont, Lydia and Caria, through "his subordinates," the bishops of Smyrna and Troas. This line of invention found an appreciative welcome in Constantinople. *Ἡ πολιτεία Μητροφάνους καὶ Ἀλεξάνδρου* in the Bibliotheca of

[35] George Cedrenus, Historiarum Compendium i 528. (C.S.H.B., Edition I. Bekker. 1838) *τῷ κά ἔτει τῆς βασιλείας Κωνσταντίου.*

[36] G.C.S. xxviii, 106–137. (Edn. G. Löschcke and M. Heinemann, 1918). H.E. ii, 38.13 merely repeats ii, 28.13, for effect.

[37] H.E., ii, 5.4 (op. cit. 44).

Photius,[38] makes Alexander seventy and Paul twelve, when they go to the Council of Nicaea, which lasts three-and-a-half years. They then tour Thrace and Illyricum, pacifying the churches, and attend the dedication of the new capital-city of Constantinople. Finally, they make an apostolic tour of Thrace, Macedonia, Thessaly, Achaia, Hellas, and the inland districts, as well as the islands. At the completion of this visitation, Alexander succeeds Metrophanes, who, on his deathbed, designates Alexander and Paul, in succession, to hold the bishopric after him.

What we have here, in short, is pure invention, ministering to the ecclesiastical vanity of Constantinople, and based upon no more knowledge than that of the names of three early bishops.[39]

II. The Early Life of Paul

Our knowledge of the early life of Paul derives entirely from N. In N^3, the Praetorian Prefect Philip, in shipping Paul to Thessalonica, jested that he was returning him to the home of his ancestors. It may be judged, therefore, that it was a well-known fact that Paul was a Thessalonian. Socrates ends the story with a phrase the irony of which suggests that he may have transcribed the actual words of the Novatian author: *ὁ μὲν οὖν Παῦλος, παρὰ προσδοκίαν ἐκβληθεὶς τῆς ἐκκλησίας ἐν ταυτῷ καὶ τῆς πόλεως, ἀπήγετο.* The purpose of the Prefect's manoeuvre was to get Paul out of the see. But the writer calls attention to a second implication of the scheme. Paul was deprived of his citizenship of Constantinople. He was returned to his place of origin, as having proved an "undesirable." So Paul was not born or brought up in Byzantium. He only came thither, as a New-citizen, in 330, when Constantine built the new quarters which turned the ancient town of Byzantium into the capital city of Constantinople. To provide population for his new capital, Constantine offered inducements to people from all the neighbouring cities to migrate. From such a city as Thessalonica there doubtless came a large contingent which filled one portion of the

[38] P.G., civ, 105–120.

[39] This development is treated by Francis Fischer, De patriarcharum Constantinopolitanorum catalogis, in Commentationes Philologicae Ienenses, iii (1884) 265–333.

city as a Thessalonian colony. So the new population of Constantinople must have taken on something of the character of "nations" in a medieval university. The numbers involved must, however, have been vastly greater. The Hieronymian Chronicle has an entry, under the year 330, *Dedicatur Constantinopolis, omnium paene urbium nuditate.*[40] This has commonly been taken to refer to the robbing of towns of their statuary and works of art to adorn the streets and public buildings of the Queen-city. But the phrase is, no doubt, deliberately ambiguous. Towns were denuded of living citizens as well as of statues. So Eunapius, in his Lives of the Sophists,[41] speaks of ὁ μεθύων δῆμος ὃν Κωνσταντῖνος, τὰς ἄλλας χηρώσας πόλεις ἀνθρώπων, εἰς τὸ βυζάντιον μετέστησε. The language of Eunapius is scornful and unsympathetic, but probably not entirely groundless. It may be untrue that the colonists were the scum of the cities they came from. But such large bodies of uprooted people must have presented something of a problem to the authorities. And outstanding men in the different groups would easily get something of the character of demagogues. At the same time, their place of origin would be a matter of common knowledge in the city. Both these things, it seems, soon befell Paul.

N^1 tells us of his elevation to the bishopric. The problem is to decide what comes from the Novatian source, and what is added by Socrates and Sozomen. Our guide here is the unity of theme running through N. It is that the competition of Paul and Macedonius has been a tragedy for Constantinople. N^1 tells how the two men came to be competitors. It was because the aged Alexander, when asked, in his last days, who should succeed him, gave Paul and Macedonius as alternatives. With the statement of the choice went a characterization of the two candidates. This characterization is given by Socrates in one way, and by Sozomen in another, while Sozomen reports that the Macedonians present it in still another manner. It appears, therefore, that Alexander's oracle upon his successors was a well-known theme in Constantinople, upon which the different parties

[40] Edn. R. Helm, p. 232.

[41] Eunapii Vitae Sophistarum, (2nd) Edn. J. F. Boissonade (1849), 462, lines 45–7.

made their characteristic comments, and that Sozomen reproduces the characterization, balanced and acute, which he found in N[1]. Socrates changes it to suit the view-point of Nicene orthodoxy, which must have Paul white and Macedonius black. Finally Sozomen adds, from his own knowledge, the terms in which the Macedonians make Paul black and Macedonius white. As Socrates paraphrases the story, Alexander says "If you want true goodness, choose Paul. If specious appearance satisfies you, you can take Macedonius." The Macedonian reply was the direct opposite. Macedonius was a promoter of ascetic life, while Paul, though *περὶ τὰ πράγματα καὶ λόγους δεινὸς*, was emphatically secular (*Παῦλον δὲ περὶ τρυφὴν καὶ βίον ἀδιάφορον ἐσχολακέναι διαβάλλουσι*). This retort is based, of course, upon an *a posteriori*. The career of Macedonius as a founder of monasteries began long after the oracle of Alexander. It is of interest, however, to gather that even in the Macedonian camp Paul was admitted to have been a man of mark. By comparison with these two party views, the oracle of Alexander, as given by Sozomen, gains in interest. It runs thus:

εἰ μὲν ἀγαθὸν τὰ θεῖα, διδακτικόν τε ἅμα ἐπιζητεῖτε, Παῦλον ἔχετε, εἰ δὲ πρὸς τὰ ἔξω πράγματα καὶ τὰς συνουσίας τῶν ἀρχόντων, ἀμείνων Μακεδόνιος.

Here is an apt characterization of the two men, whom Alexander left behind him, as the author of N would say, to trouble the peace of Constantinople; Paul, an orthodox bigot who could never keep on the right side of the secular power, and Macedonius who was only too able to do so. We can feel, confidently, that Sozomen has let us have the original Novatian story of Alexander's oracle. Socrates, in adapting that story, adds to its contrast between the two men a second contrast. He speaks of *Παῦλον τον ὑπ' αὐτοῦ* (i.e. by Alexander) *χειροτονηθέντα πρεσβύτερον, ἄνδρα νέον μὲν τὴν ἡλικίαν, προβεβηκότα δὲ ταῖς φρεσὶν*, and of *Μακεδόνιον διάκονον τυγχάνοντα μὲν ἤδη πάλαι τῆς ἐκκλησίας, τῇ ἡλικίᾳ δὲ γέροντα*. This contrast is not drawn in Sozomen, and has no importance for the theme of N. So Socrates supplied it from some source whose historical worth it is difficult to test. That Paul was still young, when made bishop, is confirmed by his ability to bear

physical hardships up to the middle of the century. On the other hand, while it is credible that Macedonius was Paul's senior, it is hardly credible that *γέρων* was an accurate description of him at that time. But some exaggeration in this respect is explicable, for the sake of emphatic contrast. Assuming that Socrates had good historical authority for this passage, the consequences are considerable. If Paul was ordained presbyter by Alexander not long after his arrival at Constantinople, he must have advanced in ecclesiastical qualification before he left Thessalonica. Constantine's provision for the building and endowment of churches for the New-citizens, with church *σιτηρέσια* (as Philostorgius testifies) [42] on the most lavish scale, argues provision for a distinguished clergy to serve the churches. There was thus the prospect of an assured ecclesiastical career before a young Lector, it may be, who chose to accompany the colonists going from his city to the new capital. And this would suggest that Paul had been trained in the household of Alexander of Thessalonica, whom we know as a protagonist, from the first, of the Homoousian cause. The part that Paul played in polemics later, accords very well with the supposition that he was formed in youth in such a school. On the other hand, if Macedonius had been a Byzantine deacon *ἤδη πάλαι* he was not a New-citizen, but a native of Byzantium. As we follow his history, reasons accumulate for believing this to be the fact. And so the competition of the two men becomes the more intelligible, in having, as part of its background, the natural tension arising between the old city and the new colonist population. The imperial palace, whose vast numbers of officials and dependents formed a third component of the yet-to-be-coördinated social life of Constantinople, lay on the slopes running down to the Sea of Marmora from the acropolis of Byzantium.[43] In this way the palace and the old city were natural allies, over against the New-citizens.

[42] H.E., ii, 9. G.C.S. xxi, (Edn. J. Bidez, 1913) 22, lines 2 and 28, with 82, line 2, where Julian transfers *τὰ σιτηρέσια τῶν ἐκκλησιῶν τοῖς τῶν δαιμονίων θεραπευταῖς*. This volume is cited hereafter as Bidez.

[43] The Great Palace of the Byzantine Emperors, G. Brett, W. J. Macaulay and R. P. K. Stevenson, 1947, reporting the excavations carried out by the Walker Trust, 1935–38. These established the identity of the Great Palace with that begun by Constantine.

It wanted but the addition of a doctrinal and political difference of outlook between the two groups to bring them within sight of civil strife. All this, however, lay in the future. At the time, Paul was elected and consecrated without untoward incident by the bishops who had come together for the purpose in the old cathedral church of Byzantium, the Irene-church or church of Holy Peace,[44] which occupied part of the present site of Aya Sofia, on the side of the old city next the palace. It is possible that Thessalonica paid heed to the career of its scion Paul, since a stone embedded in the wall of a staircase in the basilica of St. Demetrius [45] appears to be the title-stone of a church dedicated to an archbishop of Constantinople. As there was a Paul-church at Constantinople from the time of Theodosius I, so there may have been one also in the city of his birth.

III. The Date of Paul's Consecration

None of our sources indicates the date at which Paul became bishop. But two of them mention an encounter between Athanasius and Paul after the latter had become bishop. S[13] says "Paulus vero Athanasi expositioni interfuit, manuque propriâ sententiam scribens cum ceteris, eum ipse damnavit." Many have supposed that this condemnation of Athanasius in which Paul took part was that at Tyre. But if Paul had been at Tyre we should have expected to find him side by side with Alexander of Thessalonica, and not voting on the other side with the enemies of Athanasius. We ought therefore to consider if there was not some other *expositio Athanasii* (some other "setting out of the case either by or against Athanasius") leading to his condemnation, besides the synod of Tyre. On either interpretation the phrase *expositio Athanasii* is, in itself, hardly appropriate as a description of what happened at that Synod. But we know that a case against Athanasius was set forth, in the presence of Constantine himself,

[44] Socrates, H.E., ii, 6 (end), in which the division between Nicenes and Arians is read back into the times of Alexander.

[45] Archives des Missions Scientifiques, iii, (1876) 256–57. (C. I. G. 8833). L. Duchesne and Ch. Bayet argue that Paul cannot be the person in question because he would have been qualified as martyr. But he is never so qualified, and the title ὁ ὁμολογητής, which he often receives, would come after, and not before, that of archbishop of Constantinople.

at Constantinople, in the autumn of 335, when Athanasius had appealed from the synod of Tyre to the Emperor. Constantine heard Athanasius in the presence of other bishops besides his actual accusers and sentenced him to exile. This, therefore, gives us a suitable solution to the reference in S^{13}. The other reference to an encounter of Paul with Athanasius is the opening sentence of A, which runs,

κατὰ Παύλου, πρόφασις ἐπλάθη, καὶ γὰρ ὁ κατηγορήσας αὐτοῦ Μακεδόνιος, παρόντων ἡμῶν κατὰ τὴν κατηγορίαν, κεκοινώνηκεν αὐτῷ, καὶ πρεσβύτερος ἦν ὑπ' αὐτὸν τὸν Παῦλον.

This encounter evidently took place after Paul was bishop, for it was at his accession that Macedonius will have made the act of communion, which he followed up by serving as a presbyter under Paul. It is possible that we should understand Paul to have raised Macedonius from deacon to presbyter, though this might have been done by Alexander. The combination of Paul, Macedonius, and a *πρόφασις* to get Eusebius transferred from Nicomedia to Constantinople, points to Constantinople as the place of this encounter. Now Athanasius was in Constantinople on three, and probably only three, occasions. He went thither in the winter of 331–32, to justify himself to Constantine, who was residing in the suburb of Psammathia at that time.[46] But Arius was then alive, and Alexander was therefore still bishop of Constantinople; so this cannot be the occasion of the encounter in question. By the third occasion, when (presumably) Athanasius passed through Constantinople returning from his first exile, the *κατηγορία* had taken effect, in Paul's first exile; so that is too late. And we are thus pinned down to the occasion of the appeal-hearing in November, 335. So the reference of both A and S^{13} is to the same occasion, upon which Athanasius was in Constantinople for eight days. He arrived and waylaid the Emperor on 30 October,[47] who

[46] This visit is recorded in Ap. c. Ar. 60 and 65 and in the Index to the Festal Letters of Athanasius, under the year 330–331. The heading of the Fourth Letter shows that it took place, however, in the following winter. A. Robertson (Nicene and Post-Nicene Fathers, iv, 132, Note 2) in his translation of the works of Athanasius, calls Psammathia a suburb of Nicomedia, following footnote d. on p. 31 of the Festal Epistles of S. Athanasius, Oxford Library of the Fathers, 1854. But George Codinus, De aedificiis Constantinopolitanis (C.S.H.B., Edn. I. Bekker, 1843) p. 109, shows that it was a suburb of Constantinople.

[47] Festal Index, under the year 335–36.

would not, however, listen to his appeal except in the presence of some of those who had been his judges at Tyre. While such persons were being sought, there arrived five Egyptian bishops who had been at Tyre and had signed a protest against the Mareotic Commission.[48] The relations between the Egyptian episcopate and bishop Alexander of Constantinople had been cordial. We can be sure, therefore, that Athanasius and the five would promptly put themselves into touch with Paul. Consequently the scene described in A may have taken place at any time in the week between the arrival of Athanasius and 7 November, when the hearing took place. It is probable that the bringing of the charge against Paul was in some way connected with the appeal-hearing of Athanasius. Since the five Egyptians were permitted to be present, when Constantine heard the appeal, the question must certainly have arisen, at some point, of the bishop of the capital also being present. If, therefore, there were those in Constantinople who looked with disfavor on Paul, here was their opportunity to attack him by raising objections to his admission to the hearing. We have not far to look to find Paul's chief enemy. Athanasius ends the sixth section of his Historia Arianorum by speaking of the pernicious effect on church affairs of court intrigue, by enunchs and women. Then, in A, he adduces the example of Paul, a victim to such intrigues. So likewise P starts its story of the tragedy of Paul by naming the eunuch chamberlain Eusebius as the chief enemy of the church. The actual κατηγορία against Paul was brought by Macedonius, whose personal relations with Paul had been, as Athanasius argues, such as to deprive his attack of much of its force. This is to imply that Paul's real assailants were courtiers. There is no doubt that the Arian interest was already strong in the palace at Constantinople. Socrates,[49] in repeating the story of Rufinus [50] about an Arian presbyter who promoted Arianism in the imperial household, names the chamberlain Eusebius as his first convert, and adds that Arianism was disseminated from the palace into the

[48] Ap. c. Ar., 87, compared with Ap. c. Ar., 78 (end).

[49] H.E., ii, 2.

[50] H.E., x, 12, which speaks of eunuchs but does not name Eusebius (G.C.S., ix(1), 967–8. Edn., E. Schwartz, 1903).

city. The Politeia Metrophanis et Alexandri [51] retails the same story, and follows it up with the words

συνέτρεχον δὲ τῇ προδοσίᾳ Εὐσέβιός τε ὁ δυσσεβὴς πραιπόσιτος, καὶ ἄλλοι τινὲς καὶ τῆς δυσσεβείας καὶ τῆς ἀνδρογύνου φύσεως συνθιασῶται.

Philostorgius [52] credits Constantina with action in the Arian interest as early as 325. And it is an implication of the Athanasian story of the death of Arius that Alexander was already experiencing an unsympathetic attitude from the Court. There is every reason, therefore, to suppose that the election of Paul was viewed with disfavor by the powerful eunuch of the palace, and that he promptly began to lay plans for getting rid of him. His way was to find an ecclesiastical charge to bring against Paul, and an ecclesiastic to bring the charge. Macedonius, whose characteristic has been given us as "getting on well with potentates" proved to be his instrument. Athanasius, who could have told us exactly what the *κατηγορία* was, has not done so. But he has told us that, for whatever reason, it failed to accomplish its purpose at this juncture. So Paul was present at the appeal-hearing; and when it ended in a sentence of exile to Trier against Athanasius, the bishops present signed assent to the sentence, and Paul among them.

In this consistent reconstruction of the encounter of Paul with Athanasius we have strong grounds for saying that Paul was already bishop by November 335. Against this, we have the very common assertion that Arius died in 336. But this assertion rests upon the supposition that Arius was present in person at the dedication ceremonies at Jerusalem in September, 335. This supposition is not justified. It is true that nothing would have suited the ideas of Constantine better than that the heresiarch should have been the subject of a spectacular reconciliation with the episcopate, at Jerusalem. Such an event would have formed a crowning ecclesiastical triumph to grace his tricennalia. But for that very reason we can be sure that, if it had happened, it would have been attested in language very different from that which lies before us, which we must now consider. It is all from

[51] P.G., civ,1176A. Photius remarks that the Politeia contains much that is useful on the life of Constantine.(1056B.)

[52] H.E., i, 9. Bidez, p. 11, lines 1–3.

the pen of Athanasius. He cites a portion of a letter sent by the bishops at the dedication to the churches of Egypt,[53] in which they say that Constantine had written urging them *ἡπλωμένῃ τε καὶ εἰρηναίᾳ ψυχῇ δέξασθαι τοὺς περὶ Ἄρειον*. This phrase could, of course, include Arius. But they do not say that they have examined him or them; only that Constantine certifies to them that *he* examined them and proved them orthodox. In another work[54] Athanasius describes the bishops as *γράφοντες δεῖν δεχθῆναι Ἄρειον καὶ τοὺς σὺν αὐτῷ*. Certainly, the bishops at Jerusalem, prompted by the Emperor, urged the reconciliation of the churches with the Arian cause. Athanasius adds further that some Arians went with the bishops[55] from Tyre to Jerusalem (*ἀπήγαγον μεθ' ἑαυτῶν τοὺς Ἀρειανοὺς εἰς τὴν Ἱερουσαλήμ*). Certainly there were Arians at Tyre, Ursacius and Valens for example, to say nothing of others whom Athanasius would (less justifiably) have called Arians. And when Eusebius of Caesarea speaks of bishops from Egypt, *Libya*, and the Thebaid being at the dedication,[56] we may perhaps understand a combination of Meletians with Secundus of Ptolemais and his fellows. But Athanasius is not saying that the bishops took these people to Jerusalem for the purpose of their solemn readmission to communion. His argument is that they were all as thick as thieves already at Tyre, and that the synod had used championship of the oppressed Meletians as a cloak for promoting the Arianizing of the church. The publication of the Jerusalem letter is, in his eyes, merely the proof that his suspicions were justified.

What determines the meaning of these ambiguous phrases about "receiving Arius," or "the Arians," is Athanasius' own mind as to the facts about Arius and catholic communion. He wrote his letter to Serapion on the death of Arius[57] just because he learned that people in Egypt had an idea that Arius had been received back into communion. He wrote it to make abundantly clear that no such disaster (to speak from his point of view)

[53] Ap. c. Ar., 84.

[54] De Synodis, 22.

[55] Ap. c. Ar., 84.

[56] Vita Constantini, iv, 43.

[57] Ep. liv., written in 362. The Encyclical to the Bishops of Egypt, 19, written in 356, contains a shorter and more restrained version of the story.

had taken place. He could not so have written had he thought that Arius had in person been received to communion at the dedication assembly in Jerusalem. It would have been no comfort to say "He died before he could receive communion at Constantinople" if the retort was obvious, "But he had communicated, in the church of Macarius, in the Holy City." The most probable interpretation of the facts before us seems to be that Arius was summoned to Constantinople in the spring of 335, preparatory to proceeding via Tyre to Jerusalem, but died at Constantinople. From 330–333, Athanasius had been in the ascendant. In 333, Arius, attempting to claim the Emperor's fulfilment of promises made earlier, brought upon himself the publication in Alexandria [58] of the imperial letter *κακὸς ἑρμηνεύς*. The next year, however, Athanasius angered Constantine by refusing to meet "the Eusebians" at the Palestinian Caesarea. Constantine determined that Athanasius should meet them at Tyre, and meet them in the rôle of judges. He hoped, no doubt, in this way to bring him to terms and to persuade him to be reconciled with Arius, and finally to receive Arius back into the clerus of Alexandria. So would follow the coveted "reunion all round." The calling of Arius to court in 335 was a preliminary step. When he arrived, Macarius,[59] a presbyter of Athanasius who had made Egypt too hot for himself by over-zealous enforcement of Athanasian discipline, and in particular by his violence towards Ischyras, was in Constantinople as agent for the Alexandrine see. It was he who sent to Athanasius an account of the heresiarch's death under circumstances which the partisans of Nicaea regarded as dramatic and providential. We now have evidence, from a papyrus letter,[60] to show that Macarius was arrested at Constantinople in May, 335, and taken, as a prisoner in irons, to Tyre, to stand his trial. The harshness of these proceedings may indicate the bitterness

[58] The best edition of this letter is that of H. G. Opitz, who prints it as Urkunde 34 in his (G.C.S.) Athanasius Werke, iii, 1 (1935), 69.

[59] C. Hole, in the Dictionary of Christian Biography, gives three persons under the name of Macarius. They are one and the same person, and this creation of three Macarii is simply due to supposition that Arius died in 336.

[60] Harold Idris Bell, Jews and Christians in Egypt (1924), Letter No. 1914, which retails news from about middle May 335, while seeming itself to be written early in July (since the ship of Athanasius lies waiting: he actually sailed on July 11).

of the "Eusebians" over the fact that Arius had died without reconciliation. It is not to be supposed that anything in Athanasius' account of the death of Arius was open to direct refutation. But we may suppose some heightening of the color. The plain fact may be that when Arius reached Constantinople he was a sick man, and that the court sought clinic communion for him. Such a reading of the story would explain why the Eusebians were embittered, and not shamed, as their opponents argue that they ought to be, by the cirmumstances of the death of Arius. On this understanding of the story we may suppose the arrest of Macarius to have followed quickly upon the death of Arius, which we may therefore date in April, 335. It follows that at this date Alexander was still alive. But the story, which Athanasius tells, of his praying that he might die before he was contaminated by the communion of Arius, suggests that Alexander looked upon his own decease as drawing near. The story itself would gain credit, the more, if it were known that Alexander died but a short while after Arius. Now Alexander is commemorated by the Greeks on 30 August, and by the Latins on 28 August, under which date the entry "Constantinopoli depositio Alexandri episcopi" appears in the oldest texts of the Martyrologium Hieronymianum.[61] We can say with assurance, therefore, that Alexander died at the end of August, and that Paul was consecrated in September 335.[62] But that is to say that Paul was consecrated at a time when his metropolitan, Theodore of Heraclea, was away at Tyre, and when several others interested in the see of Constantinople were also there, among whom is to be included Eusebius of Nicomedia. The 19th Canon of Antioch laid down in detail the necessity of the metropolitan of the ἐπαρχία and a majority of his suffragans, agreeing to every election and consecration of a bishop within the province.[63] These Canons of Antioch, long attributed to the Dedication Synod of 341, appear, by the large proportion of the names of the bishops present who figure also in the lists for Nicaea, to come from an assembly much

[61] J. B. de Rossi and L. Duchesne, Martyrologium Hieronymianum, in Acta Sanctorum, Novembris tomus II, p. 112.

[62] No weight attaches to the statement of Socrates, H.E., ii, 5 and 6, that Paul succeeded "about 340."

[63] J. D. Mansi, Sanctorum Conciliorum Collectio, ii (1759), 1316.

nearer 325 than the Dedication synod. The most probable occasion for such a synod is to be sought in the gathering which filled the vacancy at Antioch after the removal of Eustathius. This gathering has long been conventionally dated 330, but it has now been made probable [64] that it took place late in 326 or early in 327. The sixth Canon of Nicaea had already demanded the assent of the metropolitan to every consecration in his eparchy. But just because the rules of consecration were, by 335, so well established, we must suppose that metropolitans going to a distant synod, as in the case of Theodore of Heraclea going to Tyre, would appoint vicars-general to act during their absence. So, when Sozomen [65] adduces a statment of the Macedonians that Paul "made himself bishop" in the absence of his metropolitan or of Eusebius of Nicomedia "who had a right to take part in the consecration," he gives us assurance that Paul was known to have been consecrated in the absence of Theodore and Eusebius, but he does not give us reason for believing that Paul's consecration was irregular. Sozomen himself asserts, in fact that, ὡς δὲ πολὺς ἔχει λόγος, Paul was consecrated by the bishops who were gathered in the city; clearly understanding thereby the regularity of his consecration. There would, indeed, have been no need for the πρόφασις if there had been at hand a clear and public charge giving assurance of Paul's consequent and permanent removal, such as the charge that he had been consecrated in contravention of the canons. We conclude that his consecration was not open to such attack, but that it made a bad start for him that he had been elevated "behind the backs" of the men who now counted for most in the affairs of the Eastern church.

IV. The Trial of Athanasius

Both because it is an important incident in the history of Paul, and because the principles which underly it are those necessary to an understanding of things which happened later to Paul, we must look closely at the trial of Athanasius before Constantine.

The circumstances of his appeal are dramatic. When the pre-

[64] H. Chadwick, Journal of Theological Studies, xlix (1948), 27–35.
[65] H.E., iii, 3.

siding bishops at Tyre obtained the despatch of the Mareotic Commission, Athanasius disappeared,[66] and nothing more was known of him until, on 30 October, he waylaid Constantine, returning from horse-exercise, at the entry to Constantinople. The Index to the Festal Letters of Athanasius says that he escaped from Tyre on a raft. Père Peeters is no doubt right in understanding this to be a lumber-raft, made of Lebanese timber being floated northwards on the coastal current for delivery on the coast of Asia Minor.[67] Athanasius escaped, that is, as a stowaway, and presumably made his way across Asia Minor on foot. His appearance at Constantinople effected a complete surprise. The Emperor could not but grant him a hearing, but determined that it should not take the form of a private audience. Athanasius was kept waiting a week [68] while an urgent letter of summons was sent off, which bore fruit in the arrival of six bishops who had been among the judges of Athanasius at Tyre. The Emperor's idea was evidently not, however, that he should sit alone as arbiter between the arguments of Athanasius and those of his judges. We have already noticed the presence at the hearing of six other bishops besides the protagonists. Sozomen, who leaves out Eusebius of Caesarea and Patrophilus, two out of the six judges named by Athanasius, names Theodore of Heraclea with Maris of Chalcedon as present.[69] Theodore was one of the most obvious persons for Constantine to call, both because the hearing was within his metropolitanate, and because he had been both one of the bishops authorized by Constantine to arrange the synod of Caesarea [70] in 334, and a member of the Mareotic Commission. Since we have thus accounted for fifteen bishops as present at the hearing, it is clear that we cannot exclude the possible presence of other bishops besides, whether suffragans of Theodore from the immediate eparchy, or bishops from further afield who

[66] The synod of Tyre finished on 8 September, after receiving the report of the Commission. Athanasius left Tyre, presumably, before it set out; perhaps therefore early in August. His secret departure may have saved him confinement pending the conclusion of the Commission's work.

[67] Analecta Bollandiana, lxiii (1945), 131–9.

[68] The Festal Index gives ii Athyr as the date of arrival, and x Athyr as the date of the departure of Athanasius for Trier, on the morrow of the trial.

[69] H.E., ii, 28.

[70] Theodoret, H.E., i, 28.

chanced to be in the capital. There was thus something like a judicial hearing by a court of bishops. And if it was thus "Tyre over again," it was with the fundamental difference that it took place in the presence not of a Count but of the Emperor himself, in his character of sacred Autocrat. It was for the bishops to establish, if that were the truth, the guilt of the defendant and its nature. And when that was done, the Emperor would decide what action he should take to protect the body politic from the consequences of the disorder that had been laid bare. The church policy of Constantine during the last twelve years of his life, in dealing with the clergy of the Orient, included a frequent use of this type of dual process. It does not seem to have been applied in the West, and the Western episcopate viewed it very unfavorably, when it was forced upon their attention by its victims from the East.[71] We have still to examine, however, the organic relation of this particular trial to the synod of Tyre, having, as our evidence, the letter of Constantine which brought six of Athanasius' judges to the hearing. Athanasius gives us the text, together with his own comments, and account of the trial.[72] The tone of the letter is petulant, showing the disagreeable impression that had been made upon the Emperor by the sudden appearance of Athanasius as an appellant. It is addressed *τοῖς ἐν Τύρῳ συνελθοῦσιν ἐπισκόποις*. This aorist participle is supported by other verbs in the past tense in the text of the epistle: *τὰ κριθέντα*, *συνελθόντες ἐποιήσασθε φροντίδα*, *ἐκρίνατε* and, above all, *πάντες ὅσοι τὴν σύνοδον τὴν ἐν Τύρῳ γενομένην ἀνεπληρώσατε*. Socrates[73] concluded that, while the synod of Tyre was over when the Emperor wrote, it was the same body of bishops that the letter addressed. He supposed them to have been at Jerusalem when the letter arrived, taking part in the dedication. That only eight (or, if we include the Egyptians, thirteen) of these bishops answered the summons seemed to be explained by the assertion of Athanasius that "when Eusebius and his fellows read this letter, being conscious of what they had done, they prevented the rest

[71] Letter of Julius, in Athanasius, Ap. c. Ar., 35.

[72] Letter of Constantine, Ap. c. Ar., 86. Account of the trial, Ap. c. Ar., 9 and 87.

[73] H.E., i, 33–35.

of the bishops from going." [74] Socrates, not unnaturally, found it hard to conceive how the six could stop the others from going, and naïvely suggests that the Emperor's letter so frightened the rank and file that they were fain to betake themselves home.[75] This understanding of Constantine's letter in the light of the comment of Athanasius has some difficult consequences. It makes it necessary to suppose a very long-drawn-out gathering at Jerusalem. Eusebius of Caesarea's account of the dedication gives no such impression.[76] Nicephorus Callistus, at this point in his history, refers to the contemporary observance of 13 September at Jerusalem, as the feast of the dedication of Constantine's church.[77] He mentions the continuation of the celebrations over the octave, as though referring to matters of which he had first-hand knowledge. Now, in general, liturgical custom of this sort is very good evidence for the time of year when the event commemorated actually took place. But 13 September is so close after the conclusion of Tyre that there could hardly have been time for any business to be done by the bishops at Jerusalem unless they all stayed on after the dedication was over. Even in that event, for Socrates to be right in his supposition, the sessions must have continued for a couple of months. This might be considered difficulty enough. But the discovery of the Festal Letters of Athanasius and their Index made a new and greater difficulty still, for acceptance of the supposition of Socrates; by giving an impossibly short time for the calling of the bishops from Jerusalem to Constantinople. However, a few years after that discovery, C. R. Sievers,[78] in the course of an introduction to his edition of the Historia Acephala, produced a series of arguments to shake the credit of the Festal Index as compared with the Acephala. In the course of these, he sided with Socrates, and proposed to correct the Index by reading x Mechir (5 February) instead of x Athyr, as the date of the departure of Athanasius to exile. This would, of course, mean that the appeal-hearing of Athanasius

[74] Ap. c. Ar., 87.

[75] H.E., i, 35.

[76] Vita Constantini, iv, 45.

[77] H.E., viii, 50 (P.G. cxlvi, 200D).

[78] "Athanasii vita acephala." Zeitschrift f. d. historische Theologie, xxxviii (1868), 98.

took place (at earliest) on the eve of the synod that condemned Marcellus, by which time very many bishops who were at Tyre must have reached Constantinople. Thus the assertion of Athanasius that the six bishops who answered the summons had prevented all the others from coming to the capital is rendered even more preposterous. The truth is that it is not the kind of statement to be taken seriously, and it is a fundamental error to give it decisive force, in reconstructing the course of events. The motive of the assertion is clear. Athanasius hoped for a review of the arguments brought forth at Tyre, confident of being able to refute them. And when he was confronted only by a small group of his adversaries who, moreover, raised an entirely new charge for which he was unprepared, he was cheated of his hope. Characteristically he saw in this a miscarriage of justice, brought about by conspiracy on the part of his foes. Somehow the conspirators made sure that others from Tyre, who would have treated the matter differently, did not answer the summons. The assertion of Athanasius is, in short, a tissue of surmise and inference, and we may set it on one side while we reconsider the letter of Constantine, summoning bishops to Constantinople, on its own merits.

Constantine's letter is addressed to assembled bishops who had formerly been in the synod of Tyre, and taken the lead in its decisions. It does not require that all the synod-members of Tyre should be at this new assembly, or that all the members of this new assembly had been at Tyre. The only thing it requires is that there was an assembly in progress, of which Constantine knew, at which a number of those who took the lead at Tyre were present. If this assembly were two or three days distant from Constantinople, it is unnecessary to tamper with the Festal Index. The week's delay was enough to ensure that the Court of appeal had that representation of the Tyre "bench" that was indispensable. We know, moreover, that the bishops who attended the dedication at Jerusalem had the aid of the imperial posts and shipping to regain their churches, so that even the westernmost could have been home by the end of October, if they left at once. Consequently, no difficulty is presented by the supposition that a synod, attended by the bishops who answered the sum-

mons, was in session somewhere close to the capital at the time in question. And when that has been established, it is unnecessary to carry the argument further, for the purpose of rejecting Socrates' story. But it may be worth while to suggest Nicomedia as the place of the synod. There was certainly a custom, of some antiquity, of holding autumn provincial synods, and the more recent 20th Canon of Antioch actually named a date, 15 October, for this purpose. In 335, if the metropolitan of Bithynia was to be present at such a synod in his province, it would need to be postponed, a little. And it would not be surprising if, when he and his colleague Theognis of Nicaea arrived, they were accompanied by travel-companions, Eusebius of Caesarea on his way to the capital to make his tricennalian oration,[79] accompanied for his part by his colleague Patrophilus, and the two Danubian recruits to the "Eusebian" cause, Valens and Ursacius, with still a long westward journey before them. Of such a session of the Bithynian provincial synod as is thus suggested, Constantine would know, and recognize that it provided what he sought. We should not suppose that the five Egyptians were brought to the trial by this letter of Constantine. Their presence in the capital suggests that there was secret knowledge in Egypt concerning the "disappearance" of Athanasius. But, being there, they were admitted to sit on an impromptu episcopal bench, prophetic in character of what came later to be well-known in Constantinople under the name of *σύνοδος ἐνδήμουσα*.

At the trial, the surprise tactics of the "Eusebians" consisted of covering the findings of Tyre with a new and heavier charge. The Mareotic Commission had picked up gossip in Alexandria to the effect that if anything happened to the bishop Athanasius overseas, Alexandria would retaliate with a dockers' strike that would starve out the imperial capital. So, after all the labor of the bishops at Tyre to bring home a charge of "sedition" or "tyranny" against Athanasius, he was unreservedly given away by the common talk of his own people. Such was, no doubt, the factual basis of the argument of the six. The Egyptian encyclical of 339 claims that if the Emperor had really believed the charge thus insinuated, he would have given sentence of death, and not

[79] Vita Constantini, iv, 46.

of mere relegation.[80] There is reason in this. And the Egyptians present at the trial may have felt it sufficiently to be glad to sign assent to the lesser punishment. Socrates, in paraphrasing Athanasius' account of the trial, represents the "Eusebians" as asserting that the five Egyptian suffragans had heard Athanasius threaten to stop the shipping of corn to Constantinople.[81] What Athanasius says is that his five colleagues can witness to the fact that the "Eusebians" had the effrontery to declare that he had made such a threat. Their witness to that effect was forthcoming in the encyclical of 339. But Socrates is probably so far right that they could not have denied the currency of gossip about stopping the corn. On the other hand, the "Eusebians" could not prove that Athanasius was responsible for it. Under these circumstances the charge to which, as proven, the bishops appended their signatures must have been couched in fairly vague and general terms. It is not surprising if Paul was a signatory. The charge of plotting to cut off the σιτηρέσια from Constantinople was calculated to shock him or at any rate to shock his people. There was the further incentive that his own position in Constantinople was too insecure to invite him to oppose the wish of the Emperor. So S[13] follows up its statement that he signed, *manu propriâ cum ceteris*, with the sneer "et quandiu quisque eorum (the Eastern bishops who took refuge in the West) episcopus fuit, sua judicia confirmavit." The suggestion, in that context, is that Paul signed assent to the condemnation of Athanasius in the vain hope of staving off his own condemnation, but, when condemned himself, repudiated his sentence against Athanasius. We can, perhaps, even make a guess at the form of words to which the bishops appended their signatures. Theodoret says,[82] of Paul, that the Arians accused him ὡς στάσεως ἀρχηγόν· καὶ ἄλλα τινὰ προσθέντες ἃ συκοφαντεῖν εἰώθεσαν τῆς εὐσεβείας τοὺς κήρυκας. So perhaps Athanasius was condemned ὡς στάσεως ἀρχηγόν. His defence,[83] when the charge of stopping the corn was made, was that, being ἰδιώτης ἄνθρωπος καὶ πένης, what he was supposed to have threatened was a manifest impossibility; Eusebius retorted that Athana-

[80] Ap. c. Ar., 9.
[81] H. E., i, 35.
[82] H. E., ii, 5.
[83] Ap. c. Ar., 9.

sius was πλούσιος καὶ δυνατὸς καὶ ἱκανὸς πρὸς πάντα. And it was, in fact, clearly absurd to talk of a bishop of Alexandria in 335 as ἰδιώτης ἄνθρωπος. It might be that hitherto στάσις was an offence conceivable only in persons having a standing in the civil order. But a Christian bishop was capable of influencing the civil action of large bodies of people, and in such a way as to endanger the peace. And this constituted a new form of στάσις. The circumstances of such incidents must involve religious considerations, to which the state could not now be indifferent. The routine operation of the civil courts was neither sufficient nor appropriate as a means of dealing with them. And so we see Constantine improvising a mixed court, and dual procedure, to try Athanasius.

But when we have said that Christian στάσις, of religious motive, created a new problem for those to whom was entrusted the common weal, we have only said half. The changes which had brought about this novelty had also given rise to a new Christian political theory, according to which the bishop, so far from being ἰδιώτης ἄνθρωπος, held an important relationship to the body politic. Episcopal στάσις could not, therefore, be viewed simply as the civil offence of a religious person. It could only be viewed as a religious offence. To understand Paul's history from the time of the trial of Athanasius, we must digress, to consider the new Christian political theory that was moulding the action of ecclesiastical leaders.

V. Christian Political Theory

The new political theory arose, in the first instance, from the tacit agreement of the whole church that the conversion of Constantine was an act of God. Until then, Christians, while regarding civil government as part of the providential order in nature, saw it as sadly degraded by human perversity, and "the deception wrought by demons," to wit, paganism. Within society, as thus in thrall to evil powers, the churches preserved their life as colonies of heaven only at the cost of marked aloofness from at least the active process of maintaining the civil order. But, when God chose to make a Christian prince, hope came in sight of a rapid approximation of the civil order to the divine ideal. From this must follow a drawing together of the ecclesiastical

order with the civil. So much was the outcome of general Christian reflection upon the changed character of the state. But we must not underestimate Constantine's own personal contribution to the new political theory. He saw, in the spirit of unity which had successfully held together the scattered Christian congregations, an instrument designed by God for the recovery of the body-politic of the Empire. He expected the bishops to view this task as their proper duty. He thought Christians, as a whole, to be capable of fulfilling the rôle thus assigned to them.[84] He was accordingly discouraged by his encounter with the Donatists, even to the point of seeing in it a sign of divine displeasure towards himself.[85] He took heart again at the hope that God might grant him, as sole Autocrat, the power of healing the broken unity of the church through her ecumenical action.[86] And it was by his attainment of the character of ecumenicity that the new Christian political theory was set off upon its second stage of development. The ecumenicity of the Emperor was something that must affect political theory, even for pagans. Thus Firmicus Maternus,[87] in his (pre-Christian) Mathesis, excepts the ecumenical person of the Autocrat from the range of astrological prediction. The Emperor, by being ecumenical, cannot be controlled by the regional influences of the planets, but is under the direct rule of God. "Solus enim imperator stellarum non subjacet cursibus . . . cum fuerit totius orbis dominus." [88] Everyone knew that there were races of men beyond the boundaries of the Empire, which had long been supposed, in pagan opinion, to be fixed by heavenly decree.[89] But any complication in the concept of the

[84] See Constantine's letter to the Alexandrines, Ap. c. Ar., 61. "Those who have the law of God for their guide, in addition to their natural advantages" should, by their superior understanding, be able to overcome dissensions.

[85] Letter to Aelafius, Optatus, c. Donatistes, i, 22, C.S.E.L. xxvi, (Edn. C. Ziwsa, 1893) 204–16. "contentiones . . . ex quibus forsitan commoveri possit summa Divinitas, non solum contra humanum genus, sed etiam in me ipsum, cujus curae nutu suo coelesti terrena omnia moderanda commisit"

[86] Vita Constantini, ii, 66., where he speaks as if he had conquered Licinius for no other reason than to open the way to an ecclesiastical settlement of the Donatist schism.

[87] He was later, after conversion, an ecclesiastical author.

[88] Mathesis, II, 30, 5. (Edn. W. Kroll and F. Skutsch, 1897–1913) I. 86.

[89] I. A. Richmond and R. P. Wright restore the inscription of Hadrian on Tyneside as "imposita necessitate imperii intra fines conservati divino praecepto." Archaeologia Aeliana. 4th Series, xii, 93–120.

ecumenical sovereign which such a consideration might have created for pagans melted away in the minds of Christians at the remembrance that the Gospel would gather all men into unity in Christ. Already some Christians were concluding that the Roman empire had been a providential preparation for such a consummation.[90]

The rule of the Christian Autocrat came to the churches of the East only through the overthrow of Licinius, which figured in the eyes of Oriental Christians as a second act of God. In this experience, and in the sentiment to which it gave rise, the Christians of the West had no share. So there arose a difference of outlook between East and West in political theory, which halted in the West at the point it had reached by the second decade of the century, while, for the East, it now entered upon a new period of development. It is of great consequence that from this moment Constantine resided mainly in the East, had there his chief preoccupations, and finally crowned and symbolized this preference by the foundation of his name-city on the shores of the Bosphorus. It followed naturally that the Emperor occupied the thoughts of bishops in the East in a way that he did not in the West. In particular, the experience of the Eastern episcopate at Nicaea quickened anticipations of an ideal earthly monarchy to be set up by God in the person of His servant Constantine. Eusebius of Caesarea played a most important part in gathering up and giving acceptable expression to the deductions which Christian leaders were making from the new political situation. Mr. G. P. Baker has given vivid appreciation of the epoch-making character of the Tricennalian Oration of Eusebius.[91] And Dr. K. M. Setton has underlined the fact that the Vita Constantini, while it might from one point of view be classed as a sort of continuation of the Historia Ecclesiastica, is, in prime intention, an ideal portrait of the Christian Autocrat, conceived as the Earthly vicegerent of God the Emperor of the Universe.[92] The

[90] ἥ τε Ῥωμαίων ἀρχὴ καὶ ἡ εὐσεβὴς διδασκαλία, twin roots of blessing to the world. Eusebius, Tricennalian Oration, Section 16.

[91] Constantine the Great. (London. 1930).

[92] K. M. Setton, The Christian attitude towards the Emperor in the 4th Century, (Columbia University Press, 1941), who calls attention to the views of Firmicus Maternus already mentioned.

fact that Eusebius died with the work unfinished, so that it remained fruitless (until at least the reign of Valens, when it received publication), leaves the Tricennalia Oration as alone influential in the times with which we are concerned. But Eusebius is not to be credited with originality as a political thinker. And when Dr. Setton says that "The Life of Constantine is clearly an effort to convince the Roman world that the time had come for rule by a Christian Emperor" he is in fact attributing such a conviction not to the author of the Life only, but to Eastern bishops generally, not excluding Athanasius.[93]

These political dreams and visions had their immediate consequences for the internal life of the Eastern church, of which illustration is afforded by the Canons of Antioch already mentioned. These were the work of a synod over which Eusebius of Caesarea presided, and came ultimately to take their place in the foundations of Canon law for East and West alike. They must clearly first have met the needs of their own time. An outstanding feature of the collection is the way in which it relates the episcopate to the Emperor in terms of territoriality. Canons 9–25 are all concerned with the eparchy, within which the bishops are to be united under the metropolitan. When the bishops of an eparchy cannot reach agreement, they are to call upon those of a neighboring eparchy to review the issues with them in combined session of the two eparchies, or, if need be, more. Should this fail to bring peace, there remains only recourse, by consent of the eparchy concerned, to the Emperor. He alone has the powers of ecumenicity wherewith to succor the church; as he did, in the words of Canon 1, "at the great and holy synod of Nicaea, held in the august presence of the Emperor Constantine, dear to God." This is not to say that the Emperor can do the work of bishops or that he is infallible. To establish the latter point, Eusebius relates how Constantine, after he had become sole Autocrat, rejected the title μακάριος when it was addressed to him.[94] Nevertheless, the Autocrat, if not infallible, is able, by reason of his ecumenicity, to help the bishops in their need. Eusebius expresses

[93] Setton, op. cit., c.iv, examines the attitude of Athanasius towards the Emperor Constantine and his successors.

[94] Vita Constantini, iv, 48.

his conception of this relationship of the Emperor to the Church in telling what Constantine had done at Nicaea; *τὰ τῆς συνόδου δόγματα κυρῶν ἐπισφραγίζετο.*[95] What is thus silently excluded from consideration is any ecumenical bishop or other purely ecclesiastical final court of appeal. For the Eastern episcopate, at this stage, the character of ecumenicity is realized only in the Emperor.

This makes a subtle change in the character of bishopric, as conceived in the Canons. The bishop is an official. The first concern in making a new bishop is that he shall be integrated into the episcopate of the eparchy. The rights of his subjects, though recognized, are a second consideration. Provision is made for the event that a bishop, duly consecrated, and without canonical offence on his part, may prove unacceptable to the flock for whom he was consecrated. So there comes before us, in these Canons, a new phenomenon, the *ἐπίσκοπος σχολάζων.* And Canon 16 forbids the plebs of a vacant diocese to receive, or receive back, such a person, even though unanimous in desiring it, until the consent of the episcopate of the eparchy has been obtained. Both here and in the oration of Eusebius we notice a coolness to democracy new in the Christian tradition, where, hitherto, the devoted loyalty of his flock had been taken as the surest testimony to a shepherd approved of God. The new anti-democratic feeling of the "Eusebians" throws some light on the proceedings at Tyre. Athanasius had been ruthless in using the civil arm to coerce ecclesiastical minorities in Egypt. Of this fact Bell's Meletian papyri afford eloquent testimony. Yet we hear no word of complaint, at Tyre, that Athanasius had been harsh in taking such constitutional action.[96] It entirely accorded with the new political theory for a bishop to act in this way. Accordingly, the charges preferred at Tyre had entirely to do with oppressive or violent acts committed by persons without civil authority. The Christian plebs, and, still worse, the inferior clergy, were taking upon themselves to use illegal violence in the interests of an ecclesiastical cause. Faced with such charges, Athanasius de-

[95] Vita Constantini, iii, 23.

[96] It appears from the encyclical of the bishops of Egypt (Ap. c. Ar., 5) in 338 that the Eusebians had *begun*, at that time, to lay the acts of magistrates as a charge against Athanasius.

fended himself on lines that constitute an admission on his part that the charges, if substantiated, would be of weight. And when he was unable wholly to rebut the charge, the substance of his defence was that from Nicaea onwards the Emperor was bound to the faith and order of Nicaea, and must therefore look indulgently upon breaches of the peace that might have been committed, in emergency, in promoting Nicene orthodoxy. The Sacred Autocrat must, according to Athanasius, before all things, be Catholic.[97] This was an attitude that caused his opponents the greatest embarrassment, which proceeded, as Athanasius very well perceived, from their doctrinal coolness towards the Nicaeanum. Their only way to counter-attack without exposing themselves was to convince the Emperor that Athanasius did not strive to make his people scrupulous in obedience to their sovereign. In this they succeeded just so far as to gain the relegation of Athanasius to Trier, with the result that the church of the West, with its different outlook on the principles at stake, was drawn into the quarrel. In the upshot, conduct that the East called episcopal tyranny[98] was identified in the West with pastoral zeal and the defence of the liberty of the church. Ecumenical sovereignty had been mediated to the West, from 337 to 350 when Constantius became sole Autocrat, by Emperors who accepted, as keystone of their religious policy, the rôle of guarantors of the spiritual liberties of the church. But as soon as Constantius, moulded to the Eastern theory in its most "Eusebian" form, attained rulership of the whole Roman world, we find Athanasius publicly denounced as a demagogue. This stigmatization finds brutal expression in a letter of Constantius to the people of Alexandria,[99] written in 356, in which Athanasius, who certainly derived from the upper class of Alexandrine society,[100] is dubbed

[97] Thus likewise the Westerns at Sardica write to Constantius that, before considering any ecclesiastical issue, he shall reflect "Catholicus sum." Feder, p. 182, line 12.

[98] See the comment of Eusebius of Caesarea on the behavior of the Egyptians as they entered the synod of Tyre: *εἰ γὰρ ὧδε τυραννεῖτε, πολλῷ μᾶλλον ἐν τῇ ὑμῶν πατρίδι.* Epiphanius, Panarion, 68.8, G.C.S., xxxvii (Edn. K. Holl, 1931), 149.

[99] Apol. ad Constantium, 30.

[100] Socrates, H.E., iv, 13, speaks of Athanasius hiding for four months *ἐν μνημείῳ πατρῴῳ*, which would imply a family catacomb. In the Festal Index and Historia Acephala we read of a villa, garden or estate on the New River, as a place to which he retired at need.

ἀνὴρ τοῦ πλήθους with every kind of opprobrious epithet attached. The clergy approved by the Emperor, on the other hand, are σεμνότατοι to whom the congregations are told dutifully to unite themselves. In thus attacking Athanasius, Constantius was trampling on the sentiment of the whole Western Church. And this he had reason to know, for, in 342, he had received a letter from the Western episcopate assembled at Sardica claiming that the Christian prince's task is to defend, for the people, a *dulcissima libertas* whereby everyone has *integrum vivendi arbitrium.*[101] This *libertas* is, however, only for Catholics. The Emperor is to take care lest *rectores locorum gravissimis hereticis favorem praestent.* Where Catholics are concerned, the bishops ask that *omnes ubique judices . . . ad quos sola cura et sollicitudo publicorum negotiorum pertinere debet, a religiosâ se observantiâ abstineant, neque . . . putent se causas cognoscere clericorum, et innocentes homines . . . terroribus frangere atque vexare.* The reference in this last phrase is to the Mareotic commission. And it is significant of the difference of view of East and West that "judices," for the Westerns at Sardica, means exclusively civil magistrates, while in S it is applied to the bishops commissioned to try Athanasius at Tyre.[102] We are thus prepared to find that one and the same person could be, for the West, a confessor, and for the East στάσεως ἀρχηγός. And this division of opinion based on difference of political theory tended, as time went on, to be fused with the division in theological doctrine. The key to "Eusebian" theology was the unqualified monarchy of God, so that the fanaticism of Homoousian confessors seemed to "Eusebians" the worst kind of sedition against the divine law.[103] With these facts of church politics in view, we can return profitably to the affairs

[101] Feder p. 181 line 14 — p. 182 line 2.

[102] For the bishops as *judices*, Feder, p. 56 cf. Epiphanius, Panarion 68.8 (ὁ Κωνσταντίνος) ἐκέλευσε δὲ δικάζειν Εὐσέβιον τὸν Καισαρείας καὶ ἄλλους τινάς. Likewise Athanasius is defendant (Εὐσέβιον καθεζόμενον καὶ δικάζοντα καὶ Ἀθανάσιον ἑστώτα. So Rufinus, H.E.,x,18 speaks of the woman who slandered Athanasius at Tyre: *conversa ad judices obtestari fidem dei coepit vera se dicere.*

[103] There still remained for Easterns as well as Westerns a line of demarcation between dogma and law, which tended to be blurred by Constantius, and was reaffirmed by Leontius, bishop of Tripolis in Lydia, as related of him by Suidas, in the words addressed to Constantius, θαυμάζω ὅτι εἰς ἕτερα διέπειν ταχθεὶς ἑτέροις ἐπιχειρεῖς. Suidae Lexicon, Edn. A. Adler, III (1933) 246.

of Paul, and appreciate the ecclesiastical grounds of the charge and prosecution that brought about his first exile.

VI. Paul's First and Second Exiles

It is typical of the polemical style of Athanasius that assertions which he makes in a way which sounds convincingly favorable to his cause, need but a little modification to make them tell as convincingly for the other side. He points to facts and invites the reader to accept his conclusion, but if the reader pauses to consider he may find reason to dissent. Thus Athanasius tells us that Macedonius had communicated with Paul as bishop, and was serving as a presbyter under him, when he made his accusation. The conclusion he invites us to draw is that the charge cannot have been brought with any conviction. But the inference might just as well be that Paul had recently committed some outrage on Macedonius and his associates, in spite of the fact that Macedonius had given him dutiful submission. According to N[1], *οἱ δὲ ἀρειανίζοντες Μακεδόνιον ἔσπευδον*. That argues the partiality of Macedonius towards persons to whom Paul was opposed. Paul's offence may have been to lay violent hands on some of them. And as, in the upshot, Paul was sent by Constantine into exile, without any steps being taken to fill his throne, his offence cannot have been explicitly doctrinal. His doctrinal position was obnoxious to a party in the palace, but his condemnation was sought by the same course as that which had resulted in the exile of Athanasius. It was only some three months after the first raising of the charge that it succeeded. And whereas A would suggest that the original charge against Paul fell into the oblivion it deserved before being revived to serve another purpose, it seems that the charge once made was never allowed to sleep at all. The opportunity to obtain an episcopal sentence that would implement an imperial decree of banishment presented itself in February, 336, when there began at Constantinople a synod representative of Asia Minor and the Balkans [104] whose main achievement was the condemnation of Marcellus of Ancyra for heresy. To this synod came Protogenes from Sardica, and Cyriacus from Naissus. And S[3] tells us, "Protogenes, apud acta anathematizans

[104] Eusebius, Contra Marcellum, ii, 4. (end), P. G., xxiv, 821D.

Marcellum et Paulum, postea eos in communionem suscepit." S[20] adds that Gaudentius of Naissus, successor to Cyriacus, is involved in a like inconsistency, in communicating with Paul. S nowhere accuses Paul of taking a share in the condemnation of Marcellus. It is thus clear that Paul was not allowed to sit as a member of the February synod, as he had been allowed to sit in the court that tried Athanasius. On the contrary, he was tried by this synod, not for heresy, like Marcellus, but for the original charge; according to Theodoret ὡς στάσεως ἀρχηγόν. His sentence was in the acts of the synod. But the Sardican letter must exaggerate when it speaks of the entry as an anathema. It is inconceivable that Protogenes supposed himself implicated in an unconditional excommunication of Paul. The charge, in whatever way it was worded, will no doubt have been recorded in the acts, as having been found true and just. And in this way the synod against Marcellus will, as regards Paul, have fulfilled the functions of a mixed court, like that which tried Athanasius. It is not inconceivable that in both cases the sentenced bishop was laid under conditional anathema, should he despise correction, since the Eastern bishops were evidently reacting with great sensitiveness on the subject of episcopal behavior towards the Emperor. They wrote to Constantine accusing Marcellus of *lèse majesté*, by refusal to take part in the dedication ceremonies at Jerusalem.[105] And Eusebius of Caesarea affixes a like charge on the ground of insulting flattery of the Emperor contained in a book of Marcellus.[106] But the action of the synod, with regard to Marcellus, was synodical action against a heretic in the traditional form. Marcellus was deposed and excommunicated, and betook himself to Rome. Paul, on the other hand, was not free to do likewise, but departed to his assigned place of relegation in Pontus. He had been there some fifteen months when Constantine died. The embalmed body of the city-Founder was brought to Constantinople to be entombed, in the newly-finished church of the Holy Apostles in the centre of the new city and but a short distance inside the land-wall. Here, the religious rites were conducted by

[105] Sozomen, H. E., ii, 33.

[106] Contra Marcellum, ii, 4., P.G.xxiv.824B, arguing that it aimed at getting the Emperor on his side against the orthodox bishops.

οἱ τοῦ θεοῦ λειτουργοὶ,[107] who seem to answer to οἱ τὰ νόμιμα τελοῦντες at the Emperor's so-recent baptism.[108] In neither case were the ministrants defined by local ecclesiastical office. No doubt the Nicomedian bishop Eusebius was foremost on both occasions. His translation to the bishop's throne of Constantinople may have been already in prospect. According to Cedrenus,[109] who seems to have drawn his information from Philostorgius, Eusebius had placed Constantine's will in the hands of Constantius, for which service his translation to Constantinople was to be the recompense. Accordingly Philostorgius (who ignores Paul) makes Eusebius the direct successor of Alexander.[110] Theodoret does the same, led thereto, no doubt, by the episcopal list which he gives at the end of his History; [111] a list whose commencement may go back to the Macedonian days in Constantinople.[112] But whatever was in promise or prospect, Eusebius was not translated at this time. One reason may be that the imperial will, when opened, was found to contain a provision that Constantinople should pass to the Founder's homonymous son.[113] The Paschal Chronicle [114] contains the entry ὁ μὲν νέος Κωνσταντῖνος ἐβασίλευσεν ἐν Κωνσταντινουπόλει ἔτος ά. Schwartz calls this a "worthless note." [115] But there is no intrinsic improbability in the attribution to Constantine Junior of a special right to his father's name-city. Le Nain de Tillemont took quite a different view of the entry in the Chronicle from that taken by Schwartz.[116] There is numismatic evidence that Constantine Junior made claims of

[107] Eusebius, Vita Constantini, iv, 70 and 71.

[108] Op. cit., iv, 62.

[109] George Cedrenus, Historiarum Compendium (C.S.H.B. Edn. I. Bekker, 1838). I, 520.

[110] H.E., ii, 10. Bidez, p. 22.

[111] H.E., i, 19.

[112] The Chronographia of Theophanes, in recording the baptism of Constantine, calls Eusebius bishop of Constantinople. This is in conflict with the entry of a three-year episcopate of Paul, which appears under 335. It suggests use of a succession list begun before 381.

[113] Constantine Junior, though born out of wedlock, was apparently his father's favorite, and had been treated all along as eldest son.

[114] Chronicon Paschale, (C.S.H.B. Edn. L. Dindorf, 1832) I, 534. The Annals of Eutychius of Alexandria are not such as to contribute to accurate history. But in recording the partition of the Empire, they make Constantine reign in Constantinople, Constantius in Antioch, and Constans in Rome.

[115] Schwartz, l.c., p. 472, Note 1.

[116] Histoire des Empereurs, iv (1704), 317 and (Note 2) 666.

sovereignty over the Empire beyond the third of it of which he was unquestioned ruler.[117] His letter to the Alexandrine church announcing the return of Athanasius is indicative of such a claim. Also, the phrase of Rufinus,[118] *Constantius orientis regnum solus obtinuit Constantino fratre . . . interfecto*, suggests that while Constantine lived he made claims which limited the rights of Constantius.

The entry in the Chronicle goes on to say that Constans reigned 12 years in Rome, and Constantius 12 years in Rome after that. But given an original entry of Constantine's one year sovereignty in Constantinople, there is nothing surprising in such an addition. Professor Norman Baynes, while giving no weight to the Chronicle entry, argues that it was some time before Constantius began to exercise sovereignty in Constantinople.[119] The Vita S. Artemii contains the statement,[120]

ὁ δὲ Κωνστάντιος, ὁ δεύτερος τῶν Κωνσταντίνου υἱῶν, ὃς ἦν ἐπὶ τῶν τῆς ἑῴας τότε πραγμάτων πρὸς τοὺς Πέρσας ἀγωνιζόμενος, τὸ τῆς ἑῴας ἀσπάζεται μέρος· καὶ τότε βυζάντιον μετονομασθὲν εἰς Κωνσταντινούπολιν καὶ νέαν Ῥώμην, ποιεῖται βασίλειον.

This work, which contains much that was drawn from Philostorgius, seems to have sought its historical information from some composite history constructed from good sources. In the sentence quoted a space of time is clearly interposed between the entry of Constantius upon his rule over the Orient and his taking Constantinople for Residence. Professor Baynes thought that this might be due to voluntary abstention. "Constantius was perhaps unwilling to demand for himself a capital in which his kinsmen had been so recently murdered: his self-denial should prove his innocence." The question remains: Who, then, ruled in Constantinople? To this Baynes replies, Constans, to whom fell the territory of the Caesar Dalmatius, when he was assassinated somewhat later than the brothers of Constantine. This answer, to be satisfying, requires that the Queen-city should go with the possession of Thrace, which is not, at least, self-evident. So,

[117] O. Seeck, Zeitschrift für Numismatik, xvii, 39 ff.
[118] H.E., x, 16.
[119] Cambridge Medieval History, I, 56.
[120] A. Mai, Spicilegium Romanum, iv, 346.

whether the Paschal Chronicle is to be trusted or not, Constantinople clearly did not pass straight into the possession of Constantius at the time of his father's funeral. It was so much the easier in consequence for Paul, returning from exile under the amnesty declared by Constantine Junior, to recover his see. If the city passed legally under the authority of Constantine, it is likely enough that the church of Constantinople received from him just such a letter as he sent to Alexandria, announcing to it the return of its exiled bishop. But whether or not those were the circumstances of Paul's return, he clearly thought that the tables were now turned on his enemies. Some of them experienced the weight of his hand. So S[9] complains "De Paulo Constantinopolitanae civitatis quondam episcopo post reditum exilii sui, si quis audierit, perhorrescet." At this point a whole section has fallen out of the text,[121] and no doubt gave details of Paul's "horrid" conduct. Then follows (and survives) the story of what happened when Marcellus returned to Ancyra. The details were probably the same in both stories, and indicate retaliation on church dependants who were judged to have failed in loyalty to their absent bishop. But it was a short-lived triumph in either case. The military risings, and the assassinations that took place in the summer of 337, rendered a great part of Constantine's will inoperative. The three sons of Constantine were proclaimed Augusti on September 9, 337, and in June 338 they met at Viminacium.[122] There they agreed on the apportionment of world power between themselves, and coinage was minted to celebrate the *concordia imperatorum*. This agreement, replacing Constantine's will, no doubt transferred to Constantius the unrealistic sovereignty of his brother in Constantinople. Thus the city was brought into union with Asia, and not with Europe. And by that change Paul's fate was sealed.

The brothers' agreement contained ecclesiastical clauses. One of these concerned the restoration of Athanasius, who, instead of returning instantly to his see like Paul, accompanied Constantine

[121] A. L. Feder, Studien zu Hilarius von Poictiers, in Sitzungsberichte d. Kgl. Akad. d. Wiss. in Wien, clxii (1910) Pt. 4, p. 184.

[122] See the chronological argument of Professor N. H. Baynes in the Journal of Egyptian Archaeology, xii (1925), pp. 65–9. The Theodosian Code shows Constantine Junior in Pannonia on 12 June.

to Viminacium,[123] to be formally placed under the protection of Constantius. The result was that, as he made his way back to Egypt overland, he interpreted his restoration by the imperial brothers as giving him authority to reverse the decisions of "Eusebian" synods all along his way and to restore the fortunes of Nicene orthodoxy. S[8] gives a blood-curdling account of his doings. Meanwhile Constantius, still too pressed by military necessities to be able to enjoy possession of the palace at Constantinople, hastened from Viminacium to Caesarea in Cappadocia, headquarters for the campaign in the interests of Christian Armenia which his father had opened against the Persians not long before his death. Hannibalian, prorex of Roman Armenia, who should have maintained the Roman warfare, had been among the victims of assassination, and Constantius had to obtain a grasp upon a disordered army.[124] It is probable that during the summer of 338 Athanasius passed through Constantinople. If the Paulists were encouraged thereby, they must in the end have paid dearly for their association with the Nicene leader. From Constantinople he went forward to the Cappadocian Caesarea, where he had an interview with Constantius.[125] But a rising wave of resentment must have followed in his wake. And when, at length, Constantius found leisure to take possession of the Great Palace, all the feeling aroused by Athanasius must have vented itself on Paul. This was probably in the autumn[126] of 338. In the eyes of the Eastern bishops, Paul, by his contumacious return, had, under the 16th Canon of Antioch, forfeited all right to retrial, and was bishop of Constantinople no more. So he was declared deposed by a local synod which met in the capital, and Eusebius was translated from Nicomedia to be bishop in his place.[127] For this information we are probably indebted to

[123] Apol. ad Constantium, 5.

[124] The plight of Constantius at this juncture, with Armenians deserting him and Roman discipline broken, is described by Julian, Or. 1. 20.

[125] Apol. ad. Constantium, 5.

[126] We know from Ap. c. Ar., 6 that the translation of Eusebius was news in Egypt at the close of 338 or early in 339.

[127] See Socrates H.E., ii, 7. It is possible that the same synod consecrated Gregory to replace Athanasius; Philostorgius, H.E., ii, 11. (Bidez, p. 24) records this as the work of a synod other than Tyre, called by the Emperor's leave. The Festal Index records Gregory's entry into Alexandria as bishop in March 339.

Sabinus. It was now the turn of the palace to triumph. Our surmise that Paul had received encouragement from Constantine Junior may find corroboration in the fact that Paul betook himself straightway to Trier. Maximin, bishop of Trier is blamed, in S^{27}, for being the first Western bishop to communicate with Paul. This, it says, was at a time when Paul was "nefarius et perditus," a man ecclesiastically ruined by his crimes. For ecclesiastics arriving from the East, Maximin was the door to audience by the Western sovereign. He therefore earned a peculiar hatred from the "Eusebians" by his discriminations. Paul no doubt had audience with Constantine, and then made his way to Rome to Pope Julius. His travels filled 339 and 340, and enabled him to gain the sympathy of many Western bishops. S^{11} complains of the success of the Eastern fugitives in this respect, "circumeuntes simul exteras regiones . . . persuadebant judicibus non esse credendum illis qui in eos digne sententiam protulerunt, ut hoc genere commercii sibi quondam ad episcopatus reditum procurarent." If Paul had always been at heart a Western, these two years must have confirmed his leanings. Neither he nor anyone in the West is likely to have recognized any canon on the rights of metropolitans besides the 6th Canon of Nicaea. No 20th Canon of Antioch, for them, conditioned Paul's right to return to his see so soon as the imperial sentence of exile was removed from him. And so Paul was among the company on whose behalf Julius sent to Antioch two presbyters and a letter in the hand of a Count of the Empire, calling on the Eastern bishops to come to a synod in Rome in the spring of 341 at which the appeal of all the fugitives should be heard. During the winter of 340–341, Eusebius of Constantinople was with Constantius at Antioch, and holding the presbyters of Julius waiting for an answer. When these were released to return, in January 341, they carried a refusal that constituted the first breach between the sees of Old and New Rome. Julius now held synod, without the Easterns, about March, and despatched a letter [128] to Eusebius and his companions announcing the decisions of the synod. The letter does not name Paul, but it does mention "bishops from Thrace" (in whom we may see Lucius of Adrianople, and Paul, as objects of

[128] The text is in Ap. c. Ar., 20–35.

the allusion) amongst the appellants [129] "against whom no charge had been received." In the absence of either charge or accusers, the synod acquitted all the appellants of ecclesiastical offence and proclaimed their right to reinstatement in their sees. Before the winter came again, the bishop Eusebius was dead, and there was no rival sitting upon Paul's throne at Constantinople to hinder his return.

VII. Civil War in Constantinople

On the news of Eusebius' death, Paul returned to Constantinople, accompanied by the refugee bishop of Gaza, Asclepas, who, like himself, had been vindicated by the Roman synod.[130] Asclepas may have been sent as a commissioner of the synod, to promote and witness Paul's reinstatement. The Paulist interest must have been well led in the days of Eusebius, who was, of course, largely an absentee during his short tenure of the see of Constantinople, and Paul received a popular welcome home that secured for him the possession of the churches. It is in the light of so resounding a defeat for the Eusebian cause in the capital that we can understand the statement, in P2, that the metropolitan, Theodore of Heraclea, with some other leading Eusebians recently returned from the Dedication synod at Antioch, came to Constantinople and made Paul an offer of peace. This he rejected out of hand. The rebuff left them, for the moment, with nothing that they could do except "provide for" the church of Constantinople against better days. So they met (we may conjecture in the palace, though Socrates says in the church called Paul), and nominated Macedonius, whom we may suppose to have been a leading "collaborator" under Eusebius, to be his successor.[131] Socrates, with the text of Sabinus before him, was puzzled that this author should omit to describe the consecration of his party leader, and could only attribute his silence to the worst motives.[132] But as the nominating bishops, to judge from what ensued, had no church in which to gather the plebs, we may

[129] Ap. c. Ar., 33.

[130] Ap. c. Ar., 47 shows Asclepas laying before the synod of Sardica documentary evidence of his right to his bishopric.

[131] Socrates, H.E., ii, 12, whose list of bishops agrees with that in P².

[132] H.E., ii, 15 (end).

attribute the silence of Sabinus to the fact that no consecration took place at this time, and that Macedonius remained no more than bishop-designate. This understanding of the facts removes difficulties in the interpretation of the story at a later stage.[133] But it was just this circumstance that made it so urgent a necessity for the imperial Chamberlain to get Paul out of Constantinople by whatever means. And when the early spring of 342 brought the news that Constans was pressing his brother to send Eastern bishops to meet their brethren of the West in synod, it must have occurred to him that this synod would at least serve to get Paul out of the city. This fact was realized so forcibly by the author of P that he accuses the Chamberlain of engineering Sardica for no other end. In this, his view-point is laughably parochial. But as reproduced by the Alexandrine historian it becomes preposterous. For he confuses the Chamberlain with the famous bishop just deceased, associates with him the group of bishops who sought peace with Paul, and so reaches the result that Sardica came about as nothing else than a conspiracy of the Eastern leaders to destroy Paul. In his case some excuse may be urged, for so topsy-turvy a view, in the saying of Athanasius that the Orientals had brought Sardica upon themselves by their machinations.[134] Paul and Asclepas presently received their summons to Sardica. Asclepas went but Paul did not.[135] His excuse was that his people, fearing a plot, would not suffer him to leave the city. We may perhaps see in this excuse the original source of the canard about the conspiracy of the Eastern bishops to obtain the synod of Sardica. If the statement that Paul refused to go did not stand in the original text of P^2, we must suppose the hagiographer and Theodoret to have got it independently from some Western source. But the greater probability seems to be that it did stand in P^2, but has fallen out of the 'Theodosian' text,

[133] Thus S, while attacking Paul with violence, says no word of Macedonius as rightful bishop.

[134] Ap. ad Const., 36. *πάλιν ἠναισχύντουν οἱ περὶ Εὐσέβιον τάς τε ἐκκλησίας ἐτάραττον καὶ πολλοῖς ἐπεβούλευον.* Hence the West had to take fresh action. Schwartz, without knowledge of P, guessed that the Eusebius in *Tunc temporis* was the Chamberlain, arguing that there was no ground for the Eusebian plot against Paul till after the party-leader's death. (Schwartz. loc. cit., page 516, Note 1.)

[135] See Appendix, "Date of Sardica."

either through negligence on the part of the Latin versionist, or because omitted by the Alexandrine historian. Paul's refusal to leave Constantinople seems to have driven the Chamberlain to desperation. When S^{20} tells us that the Paulists "altaria ipsa humano sanguine coinquinaverunt" and that there were "extinctiones gentilium" and "interfectiones fratrum," we may understand troops to be the *gentiles*, and members of the Macedonian party to be the *fratres*. And so we are led to the supposition that the Chamberlain sent soldiers to secure a Church for Macedonius, only to find it defended with fanatical courage and obstinacy by the Paulists. The news of these doings overtook the Eastern bishops as they drew near to Sardica, so that S, at this point, takes on the character of "stop-press." The indignant bishops represent the Paulists as wholly to blame, so that the blood of the slain at Constantinople lies on the heads of all in the West who have had any fellowship with Paul, and, above all, on the head of Asclepas, whose encouragement had rendered the Paulists so desperate.[136] We may read between these lines that the defenders of the churches had carried off the honors of the fight. And with this supposition agrees the fact that word was sent off to Antioch by the Chamberlain that the forces in the city were insufficient to maintain imperial authority. The result was that Constantius sent an order to the Magister Equitum, Hermogenes, who was leading a force of cavalry into Thrace, to visit Constantinople and lend the authorities there the help required to get the populace in hand again. We can assume that the messages to Constantius and to the Oriental bishops were both sent off on the morrow of the battle for the church. The arrival of Hermogenes at Constantinople should therefore be in the order of a month after the opening of the synod at Sardica. The synod is recorded in the Festal Index, under the Chronicle to accompany the letter for Easter 343, so that if it fell in 342, it must have been later than 29 August, the beginning of the Egyptian year. Early September is a probable time for the opening of the synod and the withdrawal of the Orientals. The business accomplished by the Westerns would suggest that they sat well into October.

[136] Feder, p. 61, lines 23–30, for Maximin; p. 72 for Asclepas, and p. 51 for five other Western leaders.

But they ended without showing any knowledge that Paul was in trouble.[137] We may conjecture, therefore, that it was just about the time that the synod was ending when worse things began in Constantinople than any described [138] in S. To the previously-known sources of information [139] on these happenings P^3 is now an addition of some importance. In spite of minor disagreements, our sources give us an assured general picture. Hermogenes picketed his horsemen before the land-wall, and trusting to the display of force to quell the mob, entered the city with no more than a personal escort and established headquarters in a house, within the walls. According to N^2, insurgents set fire to this house, presumably at night. This gives just the circumstances of confusion and obscurity to explain, what P agrees with N in stating, that the mob recognized Hermogenes and dragged him away before his men could rescue him. In Socrates, Hermogenes is dragged through the streets and then done to death. Sozomen seems to give rein to his fancy when he reverses the order; the mob kills Hermogenes, and then, having tied a rope around his legs, drags the corpse in triumph through the streets.[140] Later writers add further embroideries, as that the corpse was finally thrown into the sea. But the ironical picture of a cavalry general helpless in

[137] Schwartz, l.c., p. 476, suggests that they knew of the Hermogenes riot, which he supposed to have taken place very early (say January) in 342, and that they did not mention him, because his cause was beyond recovery. Against this is their subsequent support of Paul.

[138] The article, Hermogenes, in Pauly-Wissowa, by Schwartz, says that the Hermogenes incident took place early in the year. The sole ground for this seems to be a conjecture that the force commanded by Hermogenes was being sent from Antioch to reinforce the Danubian army. There is no evidence to show this, and as it was mid-winter when Constantius arrived to avenge Hermogenes, the riot must have been in the autumn.

[139] N^2, represented in Socrates, H.E., ii, 13 and Sozomen H.E., iii, 7.; (Socrates also draws upon a chronicle which names the consuls for 342, and records the victory of Constans over the Franks) Ammianus Marcellinus, mentioning Herculanus, son of Hermogenes, in Rerum Gestarum, xiv, 10, where he makes brief reference to the death of the father, described at length in one of the lost books; Libanius, who was himself present in Constantinople at the time of the riot, and describes his personal experiences in Or. i, 44, and the action of Constantius in Or. lix, 94; and the Hieronymian Chronicle (Edn. R. Helm, p. 235) where we have the entry for 342, *Hermogenes magister militiae Constantinopoli tractus a populo ob episcopum Paulum, quem regis imperio et arianorum factione pellebat.*

[140] Socrates, *ἐμπίπρησι μὲν αὐτοῦ τὴν οἰκιὰν δὲ σύραντες ἀπέκτειναν.* P, *ἰδόντες δὲ οἱ ὄχλοι συνέσχον τὸν κόμητα Ἑρμογένινην καὶ σύραντες αὐτὸν ἐν μέσῳ τῆς πόλεως ἀπέκτειναν.* We may suspect that *διὰ τῆς πόλεως* stood in the text of N after *σύραντες*, and that this provided the incentive for Sozomen's embroidery.

darkling city streets is thoroughly in the style of N, which can here be taken as our closest and most accurate witness. The most remarkable thing about the comparison of sources is that the Christian sources, with one consent, describe the riot as the resistance of the Christian plebs to a threatened removal of their bishop, while the pagan sources treat the whole thing as mob-madness pure and simple, and ignore the religious motive of the rising altogether. So Ammianus describes Hermogenes as "apud Constantinopolim popularium turbela discerptus," while Libanius speaks of the occasion as *ἡ τοῦ δήμου μανία*, without mentioning the Christians as such, for good or ill.[141] P[3], on the other hand, by its *λιθοβολοῦντες*, makes the murder strangely deliberate, and treats it as acknowledged Paulist retaliation. Sozomen thought that the charge on which the Holy Notaries had been executed, ten years after this, was that of having organized the rising in which Hermogenes was slain.[142] So also P[3], in unexpected agreement with Libanius, records the fact that the proconsul deserted his post and fled to Heraclea.[143] For P to mention this is to boast successful resistance to imperial authority. So it would appear that the incident had two different appearances, according to the knowledge of the observer. No doubt there was a general insurrection. The city mob could easily read the weakness of the city government in the outcome of the battle for the church, and so be emboldened to kick over the traces. But in view of the Christian evidence we must conclude that the general mob-rising cloaked a deliberate Paulist plot to remove the new threat to Paul's episcopate. The frank admission of this by P shows up the religious fanaticism of the times. After the death of Hermogenes, the leaderless cavalry, unable to effect anything on a walled city whose gates were now closed against them, went their way. The Senate of Constantinople, acting in the part of a popular

[141] This may be deliberate abstention. In Or. lix he refers to arguments by Senators, refuted by Constantius, which may well have involved the question of Paul.

[142] H.E. iv, 3.

[143] Wounded, according to Libanius. P[3], calling the proconsul *ὁ ἔπαρχος τῆς πόλεως*, the equivalent of Praefectus urbis, is mildly anachronistic, since the Prefecture only dates from 359. The anachronism may be due to substitution, by the hagiographer, of the title familiar to him, for *ὁ ἄρχων* in the text of P.

government, restored a degree of order.[144] The palace must have remained in a state of siege. It had access to the sea, however, and so was able to send off an appeal for help to Constantius. This reached him as the approach of winter slacked the urgency of war in the field, following an autumn that had brought him a measure of success, as his bishops returning from Sardica were careful to publish, and as Libanius notes. Constantius now collected an army adequate for the recovery of his capital and crossed Asia Minor by forced marches. The mist of a winter morning lying on the Bosphorus suddenly disgorged imperial troops, and the city capitulated without resisting. Libanius describes the able way in which Constantius put Constantinople to rights, but mentions the Christians and their bishop not at all. The Christian writers, on the other hand, know of no settlement but the ecclesiastical.[145] Macedonius was reprimanded for allowing himself to be the occasion of a breach of the peace, and it is implied that he should have awaited vindication of his election by the Emperor, without playing the party-leader. And while Paul was expelled, the churches were left in the hands of the Paulists. This settlement is so far removed from what the Chamberlain can have wished or expected that we must suppose Constantius to have discovered evidence that religion had been the torch that set Constantinople afire, and recognized that fanaticism, aided from the West, might rekindle if made the object of attack. He thus postponed any other interference than the removal of Paul. But it seems that his manner of carrying out this was exemplary. At some stage, A says, Paul was taken in chains to Singara. This must mean as a convict, sent to do forced labor in fortifications on the Persian front. The morrow of the Hermogenes riot is the one point in Paul's history when this seems conceivable.[146] The fact that the Constantinopolitan sources say not a word of it may be but further indication that the Paulists recognized their responsibility for the riot, and so for the consequent humiliating experience of their bishop. None of our sources tells of any sentences to penal servitude having followed the

[144] Libanius, Or. lix.

[145] For example, Sozomen does not even mention the *σιτηρέσια*.

[146] This was first argued by De Valois in his note to Socrates, H.E., ii, 15.

Emperor's visitation. But it is inconceivable that Constantius can have failed to find ringleaders or scapegoats to whom to apply exemplary punishment, as a warning to the mob. On the other hand, if any were sent to penal servitude, and Paul relegated to a place of exile, it would be like Athanasius to conclude that Paul had gone in chains to Singara. Socrates, to whom A was unknown, supposed that Paul had gone to Rome. Before we leave the subject of the Hermogenes-riot, some attention is due to the possibility of political motives, as apart from ecclesiastical, having something to do with the general character of the disturbance. In view of the abject submission of the city on the arrival of Constantius, we cannot suppose that the Constantinopolitans had had any thought of freeing themselves from his rule. But it is possible that the populace, and especially the New-citizen element, had hoped for the annexation of the city by Constans. The leanings of the Balkans were towards union with Italy and the West, and not with Asia. The Balkans had, in 337, fallen to the share of Constans, and were in fact ceded to Constantius by the secret understanding between the brothers during their united opposition to their half-brother Constantine in 340. There was perhaps ground for the idea that Constans might now support a revolt against Constantius. We know that a demonstration took place against the returning Eastern bishops as they passed through Adrianople from Sardica, and that Constantius took so serious a view of it as to execute ten arsenal-workers convicted of responsibility.[147] Already the principle "cujus regio, ejus religio," is in evidence; and may explain the relation of the Christian share in the rising against Hermogenes to the general insurrection. But any hopes there may have been that Constans would go back on his bargain with his brother were disappointed.[148]

VIII. The Prefect Philip

If Paul left Constantinople in chains, many reasons counselled their removal before long. The course of events in 343 was

[147] Athanasius, Hist. Ar., 18.

[148] This lends point to the address of Libanius' 59th oration, on the Persian war, to *Constans* and Constantius.

towards further yielding on the part of Constantius to the ecclesiastical will of the West, in the eyes of which the person of Paul was sacred. It is probable that no positive evidence established Paul's responsibility for the riot. Athanasius, in A, represents Paul's relegation to Emesa as a further instance of Constantius' caprice. But we may be safer to see in it, if not his original and only sentence, at least a mitigation of it. At Emesa, Paul will have learned of the fall of Stephen of Antioch, and read in that news the evidence of a Western ecclesiastical victory in which he must hasten to participate. So we must suppose him to have seized some opportunity to break bounds and hasten back to Constantinople, where, as the settlement made by Constantius opposed no barrier to his recovery of his see, he evidently received another rapturous welcome home. This should have taken place in the summer of 344, the year after Stephen fell. This is the year in which the latest evidence is found of the tenure of the office of Praetorian Prefect of Oriens by Leontius.[149] Not until after some interval is there known evidence of the succession of Philip to this Prefecture. But there is nothing, on the other hand, that argues against the succession having taken place in the later part of 344.

N^3 is a graphic story of Paul's eviction by Philip, the circumstances of which gain, vastly, in appropriateness, if the occasion were that of Philip's first state visit to the capital. According to this story, Philip held a reception for the city notables, to which he bade Paul. The public building selected for the ceremony was the Bath of Zeuxippus, built by Severus, on the south side of the Agora of old Byzantium.[150] It must have been the noblest public building of the old city, and contained a hall, lit with glass lamps, which Codinus describes[151] as a *δημόσιον γυμνάσιον*. Its position was in close proximity to the palace. And we may read evidence of prior consultation between Philip and the Chamberlain in the fact that a building should have been chosen whence there was private access by a closed passage to the palace. Natu-

[149] J. R. Palanque, Essai sur la Préfecture du Prétoire du Bas-Empire (1933), pp. 20–22.

[150] S.v. Byzantion, Pauly-Wissowa, iii, 1122.

[151] George Codinus, De originibus Constantinopolitanis, and De Signis, (C.S. H.B., Edn. I. Bekker, 1043) pp. 12, 36, and 38.

rally, Paul saw in his invitation to the reception the proof that his return to his see was to receive imperial recognition. So, likewise, the crowd that watched the dignitaries entering the reception-hall must have noted with satisfaction the figure of their bishop as he passed the guards at the door. But when, within, Paul reached the Prefect, he was presented with an imperial warrant for his perpetual banishment from the realms of Constantius. So, for the time, Paul had banked too heavily on the strength of Constans and the weakness of his brother. And as it was evident to him that he was trapped, and resistance would be futile, he suffered himself to be led out through the private passage, and so down through the enclosed gardens of the palace to the little private harbor of the palace, called Boukelion, on the sea of Marmora. There, out of sight and hearing of the crowd waiting before the Bath of Zeuxippus, he was put aboard the vessel that bore him swiftly away to Thessalonica. The passage which had swallowed up Paul presently disgorged Macedonius and his consecrators, bringing the reception to its destined end. The Prefect then led out Macedonius to sit beside him in his chariot. The waiting crowds were thunderstruck. Then the significance of the spectacle was grasped, and as word passed from lip to lip, the people flocked from every side to the mother-church, the Church of Holy Peace. As, therefore, the Prefect's procession drew near the church, the troops leading the way found the crowd so thick that they could not clear a road. Wrongly supposing that they were meeting with deliberate resistance, they used their weapons on the people. The result was a stampede in which many more were trodden to death than fell by the sword. And so, the author of N observes with the grim satisfaction of a Novatian, the episcopate of the second state-bishop was, before its inception, as bloodstained as that of his predecessor through almost a decade.

Socrates, not recognizing that Thessalonica, the goal of Paul's journey, was in the domain of Constans, so that Philip had given Paul "the key of the street," imagined this to be relegation to a place of internment, with some liberty of movement.[152] So he

[152] In Socrates, H.E., ii, 16, Philip, after ordering Paul to Thessalonica, adds the ironical leave ἀδεῶς τε ἐπιβαίνειν καὶ κατὰ τὰς ἄλλας τῶν ἐν Ἰλλυριοῖς πόλεις, meaning "or anywhere else you like, in Illyria."

invented a feigned journey, on Paul's part, to Corinth, to account for his ensuing travel in the West. In fact, the West was as free to him as the East was now closed.[153]

IX. The Final Stage

Paul's Western travel brought him swift success. An unnamed synod of orthodox bishops, we are told in P[5], unanimously condemned the "unfilial" conduct of Macedonius in accepting consecration to Paul's throne. We may guess that the unnamed synod was that of Milan in 345. The temper of the West was now rising. Socrates cites a supposed letter of Constans to Constantius, threatening to put Athanasius and Paul in their sees again by armed force.[154] De Valois, in his note on this passage,[155] recognizes that it reads more like an ecclesiastic's notion of what the Western Emperor should write than actual diplomatic. But notions of some such threat were widespread, and find as blunt expression in Philostorgius [156] as in Theodoret.[157] It is certain that as the military necessities of Constantius made his brother's good will increasingly indispensable, it grew less and less practicable for him to go on resisting the demands of the Western bishops. The source of the "letter" as cited in Socrates would appear to be some work of Western origin of a polemical nature. And we may attribute to the same or a similar source the description, in Socrates, of the last return of Paul to Constantinople,[158] furnished with letters of Constans and of "the synod," *μετὰ δνεῖν ἐπισκόπων καὶ τῆς ἄλλης τιμῆς*. Socrates, placing Sardica in 347, thought that that was "the synod." But this return of Paul was probably in 346. By that year Athanasius reached home, though he would not move until he had the fullest guarantees of protection from Constantius. But Paul, Socrates says, returned *παραχρῆμα*, presenting to the officials of Constantius

[153] H.E., ii, 17. The point is not reproduced in Sozomen. In the middle fourth century the directest route from Thessalonica to Rome via Dyrrachium was still in use.

[154] Socrates, H.E., ii, 22.

[155] E. Schwartz argues to the same effect in an article Zur Kirchengeschichte des vierten Jahrhunderts, Z.N.T.W. (1935), xxxiv, 139, Note 4.

[156] H.E., iii, 12.

[157] H.E., ii, 8.

[158] H.E., ii, 23.

the letters of Constans. Those officials had had instruction from Constantius to receive Paul.[159] But the Chamberlain was not likely to forget the humiliation. We may suppose that the two bishops came with Paul to represent the synod of Milan. ἡ ἄλλη τίμη may indicate that Paul also had the company of an imperial officer and his men-at-arms. Macedonius, thus for the time dispossessed of the bishopric, continued liturgy in a single church.[160] We hear, later, of a church built by him, in which, in 382, the remains of Paul were laid to rest, so that it came to be called the Paul-church, and the people eventually supposed it to be dedicated to the apostle of the Gentiles.[161] The hagiographer of the Holy Notaries permits himself a surprising addition to the text of P^5, in saying, of Macedonius, that the poor followed him, when he was removed from bishopric, ἦν γάρ, φησίν, ὁ ἄνθρωπος φιλόπτωχος. It suggests that Macedonius was a man of means. As Socrates says that he retained this church after the enthronement of Eudoxius in 360, it seems likely that the building was the property of Macedonius. So, for five years, the Christians of Constantinople were ranged in opposing camps. The state of truce between them was based on a balance of power which became unstable, in 350, when Magnentius overthrew Constans. Until after the battle of Mursa, on 28 September 351, it was in doubt which way the balance of ecclesiastical power at Constantinople would turn.[162] The Prefect Philip was with Constantius at Mursa. But P^7 shows that he returned to overthrow the Paulist cause.[163] It may be substantially true that, as P says, Paul and his notaries suffered for loyalty to the Nicene faith. But the form of their punishment is eloquent of a charge of civil offence. There is no ground for doubting that Magnentius had sent letters to Paul. And it is probable that Paul behaved as correctly, under those circumstances, as did Athanasius. The palace at Constantinople may even have been somewhat in his

[159] L.c.

[160] καθ' ἑαυτὸν ἐν ἰδιαζούσῃ ἐκκλησίᾳ τῆς πόλεως τὰς συνόδους ποιούμενος.

[161] Soz., H.E., vii, 10.

[162] Socrates records the final exile of Paul two chapters before the submission of Vetranio, December 350, but it would be rash to conclude that this was based on sound chronology.

[163] Athanasius, De fuga, 3, also lays the responsibility for Paul's sentence on Philip.

debt for steadying popular reaction to the events of 350. Such a supposition accords with the fact that Paul escaped with his life. That the Holy Notaries were executed seems to show that evidence of treasonable correspondence was found against them. Paul was taken as a prisoner to Cucusus. There we lose sight of him. He would still not have been over sixty had he lived till the days of Julian, and Constantinople would surely have seen him again if he had lived so long. There were dark stories of his being done to death, such as was told to Serapion of Thmuis at the Court of Constantius by Philagrius, who had, at the time of Paul's exile, been Vicar of Pontus.[164] The story in Franchi de' Cavalieri's second recension, that the local headman at Cucusus, using his scarf, throttled Paul in his dungeon is probably a variant of the same story.[165] Athanasius believed the story, but Sozomen tried in vain to get confirmation of it.[166] The probability is that Paul died a natural death. He never receives any title but ὁ ὁμολογητής, and his remains were brought from Ancyra [167] to be laid to rest in his name-church in 382, by Nectarius and the bishops assembled at the synod in Constantinople. The Vita Pauli in Photius describes the solemnities beginning by a procession of bishops that went out beyond Chalcedon to meet the relics.[168] But the people, who promptly instituted a cultus of the Holy Notaries, as quickly forgot Paul, so that, by the time of Sozomen, they had actually transferred his name-church, in their own minds, to the apostle of the Gentiles.

After Paul was gone, Macedonius was bishop in Constantinople for nearly nine years before he was replaced by Eudoxius. To judge from what Socrates says, it was the Novatians who had

[164] So A, supported by De fuga, 3. The version in P can hardly be dependent on Athanasius. The story in De fuga, beginning διώξαντες καὶ εὑρόντες, has been taken to mean that Paul fled from Constantinople. But this language is meant to be picturesque, that "the quarry was tracked down" at Cucusus does not tell against the plain statement of exile to Cucusus in A.

[165] L.c., p. 173.

[166] H.E., iv, 2.

[167] Socrates, H.E., v, 9, without other support. The second Vita Pauli (P.G. cxvi, 884–896A) substitutes Cucusus, and asserts Paul's martyrdom in the words ἔνθα καὶ τῷ δι' ἀγχόνης τῶν δυσσεβῶν νύκτωρ ἐπισπευδόντων τελειοῦται μαρτυρίῳ (892C).

[168] P.G. civ, 129D–131A.

most reason to hate Macedonius.[169] Doctrinally he was Homoiousian, and in the eyes of Philostorgius "no better than a Nicene." [170] But P^{5-8} has telescoped his days into those of Eudoxius, and confused the prosecution of the Notaries under Philip (who had been disgraced by 353) with the persecution of the Paulists by Eudoxius, ten years later. What that should prove is that the Paulists had little to complain of under Macedonius. The days of Euxodius were but a third as long, and yet they stretched back, in the mind of the author of P, till they mingled with the events of 352. The story of the all-but-successful extermination of the Homoousian church in Constantinople, by the alliance of the palace and a time-serving bishop, is a tragic one, and there is agreement, in the telling of it, between Sozomen [171] and P. Perhaps the most miserable feature of the story is the use, by the Chamberlain Eusebius, of the σιτηρέσια as a means of conducting the religious war. Yet we must recognize that the pattern came from the hand of Constantius, when he halved the σιτηρέσια after the Hermogenes-riot of 342. For, in this whole story, the religious and the political mingle in a way that defies their disentanglement.

When we stand back from this picture of Paul's career, we see that it forms a very significant part of the picture of the birth of New Rome. Paul tried to be the Ambrose of Constantinople. He can have had few equals for sheer courage and pertinacity. He had other qualities of greatness besides. Although no single word of his has come down to us, he was, in the judgment of his contemporaries, both eloquent and an exponent of orthodox theology. He had personality that stirred, in the masses of Constantinople, a romantic loyalty to their bishop, and that kept them steadfast, in spite of adversity, for more than fifteen years. Insofar as his defeat is to be attributed to the religious policy of Constantius, he can claim a posthumous

[169] H.E., ii, 27 and 38, while including all Homoousians among the victims of Macedonius, seem to rest on Novatian evidence. Union was "nearly effected" between Paulists and Novatians, at this time, according to Sozomen, H.E., iv, 20, while iv, 2 agrees in details with P.

[170] H.E., iv, 9 (Bidez., p. 62).

[171] Sozomen, H.E., iv, 26, is in general terms. For the persecuting alliance of Eusebius the Eunuch with Eudoxius we learn for the first time from P^{8}.

victory in the days of Theodosius. But the causes of his failure go deeper than any ephemeral policy. The thing against which Paul strove was the inevitable character of Constantine's capital, impressed upon it by its founder, by its geographical situation, and by the trend of world-history alike. Constantinople was an artificial construction, a capital of the Orient, but built on the European shore of the Bosphorus. Its population was a vast assemblage of imperial dependants, bound in the long run to be dominated by the Great Palace, as the author of the city's prosperity. Under such circumstances, Paul's hopeless mistake was to defend the spiritual liberty of his church by waging with the palace a war that could only end in one way. The political theory that inspired his struggle was the Western theory, destined to be ousted from Constantinople by its Eastern rival, of which, in due course, Constantinople became the citadel. Of those who followed Paul in his bishopric, Chrysostom and Flavian imitated his attempt at independence and shared his tragic fate.

So, as we consider the story of the Constantinopolitan bishopric down the centuries, the oracle of Alexander takes on a new significance. The choice before Constantinople, it seems to say, was never a simple choice between this man or that. It was always a choice of the manner of bishop it would have. And the city being what it was, the decision, in the long run, was certain to be in favor of one inclining *πρὸς τὰ ἔξω πράγματα καὶ τὰς συνουσίας τῶν ἀρχόντων.*

Appendix, The Date of Sardica

The error of Socrates [172] and Sozomen [173] in naming 347 as the year of the synod of Sardica was disclosed as a result of the publication by Maffei of the Historia Acephala.[174] Sievers tells the story of subsequent fluctuations of opinion, in the introduction [175] to his edition of the Historia Acephala. It was the publication by Larsow, in 1852, of his translation of the Festal Letters of Athanasius, known through the discovery of part of the col-

[172] H.E., ii, 20.
[173] H.E., iii, 23.
[174] Osservazioni letterarie, iii (1738), 1–92.
[175] Zeitschrift f. d. historische Theologie, xxxviii (1868), 92–95.

lection, in a Syriac version, by Archdeacon Tatham ten years previously, that ended doubt, and resulted in the establishment of the date 343. This remained unquestioned until 1904, when Schwartz [176] proposed the date 342. In the following year he published his very full and careful argument for this date.[177] In 1909, Loofs took up the cudgels [178] for 343, and Schwartz replied two years later.[179] Loofs died without replying or admitting defeat. But Lietzmann, in 1938, in the third volume of his early church history, assumed Schwartz to be in possession of the field,[180] a view in which the present writer would concur on the strength of the arguments exchanged in the controversy. In 1936, however, the third volume of the Histoire de l'église edited by A. Fliche and V. Martin was published, containing a chapter by Bardy, in which he declared for 343 on the strength of arguments that had been brought forward by his colleague J. Zeiller.[181] But the most positive of these arguments [182] rests upon a mistaken reading of Athanasius.[183] Zeiller argues thus; the mission of Euphrates of Cologne and Vincent of Capua to the court of Constantius at Antioch must have been in the spring immediately following the synod of Sardica. Athanasius, so Zeiller says, dates the deposition of Stephen of Antioch, resulting from his scandalous plot against the Western envoys, as having taken place ten months before the death of Gregory, the Arian bishop in Alexandria. Therefore, since we have the date 26 June 345 for Gregory's death,[184] Stephen was deposed, Zeiller argues, in August 344, and so the synod of Sardica was in 343.

The statement of Athanasius, in fact, is that the death of Gregory occurred ten months after Constantius had restored

[176] Nachrichten v. d. Kgl. Gesellschaft d. Wissenschaften zu Göttingen, 1904 (Phil. — hist. Kl.), 341.

[177] Christliche und Jüdische Ostertafeln (1905), No. viii in Abhandlungen d. Kgl. Gesellschaft d. Wissenschaften zu Göttingen.

[178] Zur Synode von Sardika, in Theologische Studien und Kritiken, lxxxii (1909), 279–297.

[179] Schwartz, l.c., 515 ff.

[180] Geschichte der Altenkirche, iii, 195.

[181] Histoire de l'Eglise, iii, 123, Note 3.

[182] Les Origines chrétiennes dans les provinces Danubiennes, in Bibliothèque des écoles françaises d'Athènes, Fasc. 112., (1918) 229–231.

[183] Hist. Ar., 21.

[184] Festal Index, to Letter for Easter 346.

liberty to the Athanasian congregations in Alexandria. This is the kind of time-interval that people would remember, since, for ten months, there had been a dual cultus in the city. The interval between the death of Gregory and the deposition of Stephen is not such as would be remembered. Athanasius is arguing that relief began to come to the Nicene cause in Egypt quite a while before his recall, because Stephen's plot had opened the Emperor's eyes to the villainy of the Eusebians. For this reason, he naturally ignores the lapse of time between the fall of Stephen and the benefit experienced by the Nicenes in Egypt. Presumably Zeiller, influenced by the suggestion of causal connection between the two events, assumed the deposition of Stephen to have preceded the liberation of the Athanasian congregations in Alexandria by only two or three months. But the thesis of Athanasius is highly questionable. The exposure of the plot against the Western envoys was, admittedly, a heavy reverse for the Eastern ecclesiastical cause, in its controversy with the West. And as it was followed up by the maintenance of steady political pressure upon Constantius to give contentment to the Western bishops, it is comprehensible that Constantius presently saw that a reversal of his ecclesiastical policy as regards Egypt could not be indefinitely postponed. But the probable tempo of this movement is slower than the narrative of Athanasius would suggest, and two or three months is likely to be much too short an interval between Stephen's deposition and the liberation at Alexandria. So Zeiller's argument does not turn the scales against Schwartz. The support given by P^2 to Theodoret's statement that Paul was called to Sardica, now prevents its dismissal. And if it stands, Sardica cannot have been in 343. The date 342 thus appears to have been made secure by P.